Chapter 9

The Enforcement Engine: Slave Patrols, the 13th Amendment, and the Compounding Model (1704–1865)

RUNTIME LOG: 1704-1865 (AMERICAN SOUTH)

System Stress (min: class resistance): MODERATE -- Buffer Class pacified by $j\psi_s$. Racial partition holding. But physical enforcement of extraction requires dedicated apparatus.
Capital (max: extraction output): EXPANDING -- Slave capitalism scaling. Human bodies classified as mortgageable assets. Cotton economy driving global markets.
Interference State (Φ_{load}, proximity to τ): STABLE -- race-dominant phase management with low dimensionality. Estimated $\Phi_{\text{load}} \in [0.45, 0.60]$, $\rho_\tau \in [0.45, 0.65]$.
Variables Loaded: E, $O_{\text{racialized}}$, I, I_{buffer}, P_{uppet} (prototype).
Variables Deployed This Cycle: F_{enforce} (Enforcement Class), QI (Qualified Immunity--latent).
Executing Function: Deploy physical enforcement tier. Convert slave patrols into permanent state apparatus. Embed extraction loophole into 13th Amendment.
Result: Four-tier hierarchy operational. [POLICY] Fugitive Slave Act (1850) merges enforcement tracks. [POLICY] 13th Amendment (1865) loophole ($O_{\text{incarcerated}} \to$ forced labor) ensures extraction survives abolition. max secured indefinitely.

With the Buffer Class pacified and the Puppet Class deployed as the system's political interface, the Elite required one more critical component: a physical enforcement apparatus. This chapter traces the invention of the Enforcement Class and the mathematical proof that the system's harm compounds multiplicatively over time.

The Enforcement Class is where the mind virus becomes kinetic. A racial prior lodged in private cognition is dangerous, but it becomes system architecture when a caller, patrol,

judge, jailer, or militia can convert that prior into force. The host thinks it is perceiving threat; the enforcement apparatus treats that perception as actionable intelligence; the resulting violence then feeds new evidence back into the prior. This feedback loop is the bridge between software running in the mind and hardware deployed by the state.

9.1 The Economics of Enforcement: Slave Patrols as Capital Management

To fully grasp the dual genealogy of American policing, we must correct a fundamental historical sanitization: Southern slave patrols functioned as an extreme form of Elite property management, because the legal architecture of slave capitalism categorized human beings as physical capital and collateral.

When F_{enforce} (the early slave patrols) was deployed to capture a runaway, they were preventing catastrophic capital flight for E. The Northern commercial police protected static property (warehouses, shipping docks). The Southern patrols protected biological, mobile property. When the Fugitive Slave Act of 1850 formally merged these two tracks, it unified the enforcement algorithm: the state's monopoly on violence was uniformly optimized to protect the capital of the Elite, regardless of whether that capital was a textile mill in Boston or a human being in Virginia (see Figure 9.1).

9.1.1 The Gendered Enforcement Gradient

The application of the enforcement apparatus has historically been intersectional, targeting women of color with disproportionate brutality. Total executions of women were statistically rare compared to men. The racial disparity within those executions remains stark: between 1632 and 1962, 55% of executed women were Black. This intersectional enforcement is detailed as part of the gendered axis analysis in Chapter 8.

9.1.2 The Erasure of Extrajudicial Violence

The documented figure of 356 executions is a vast underrepresentation of the true scale of state-sanctioned and state-tolerated violence against women, particularly Black women. During the antebellum period and the subsequent Jim Crow era, the murder of enslaved and free Black women often occurred outside the parameters of the formal legal system. Because enslaved individuals were legally categorized as property (Section 4.1), their deaths at the hands of enslavers were frequently treated as matters of property damage ,

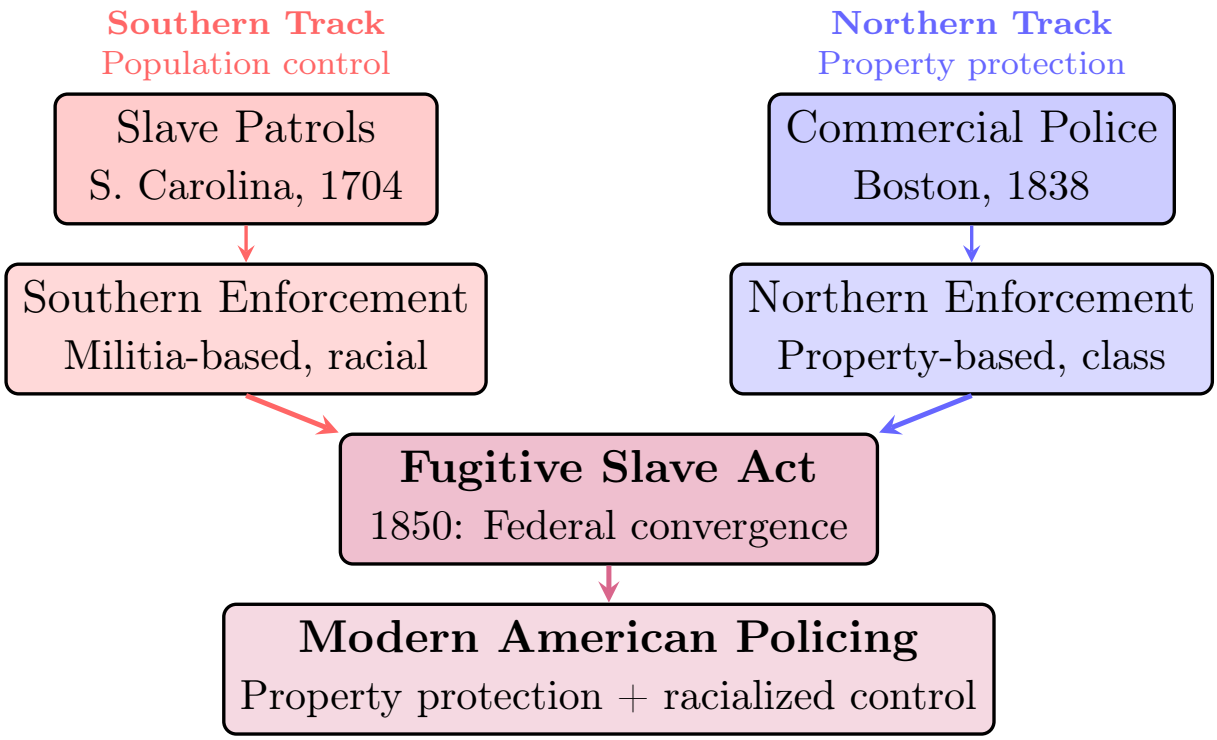


Figure 9.1: **The Dual Genealogy of American Policing.** Modern policing emerged from two distinct traditions: Southern slave patrols (1704) organized for racialized population control, and Northern commercial police (1838) organized for property protection. The Fugitive Slave Act (1850) federalized the slave patrol function, conscripting Northern police into Southern enforcement and fusing both mandates into a single institution.

with no homicide prosecution. The omission of thousands of unrecorded lynchings and localized executions underscores the inherent unreliability of historical data when assessing the true vulnerability of marginalized women to lethal state control.

9.2 Introducing the Fourth Variable: The Enforcement Class (F_{enforce})

The slave patrol system reveals the structural necessity for a dedicated enforcement tier. The Elite (E) cannot personally actuate their extraction; doing so would expose them to the physical dangers of direct rule. The Buffer Class (I_{buffer}) provides ideological cover but lacks institutional authority. The system therefore required a specialized kinetic arm (recruited from the lower classes but compensated with unique privileges) to physically enforce the extraction algorithm.

The Enforcement Class

The Enforcement Class (F_{enforce}): The kinetic arm of the algorithm ($F_{\text{enforce}} \subset I \cup O$). Comprising the military, domestic police forces, and carceral agents, they physically actuate the extraction. By design, E recruits F_{enforce} almost entirely from the lower classes. To ensure their compliance in inflicting brutality upon their own socioeconomic peers, E compensates F_{enforce} with a unique variable: **Qualified Immunity** (QI)—the judicial doctrine that shields state agents from civil liability for constitutional violations unless the victim can cite a prior case with nearly identical facts. The asymmetry of QI is most starkly visible in the distribution of lethal autonomy. Under the Law Enforcement Officers Safety Act (LEOSA), active and retired members of F_{enforce} are granted the statutory right to carry concealed firearms in all 50 states, superseding every state and local restriction. The Second Amendment thus operates on a strict gradient:

$$\text{Lethal Autonomy}(F_{\text{enforce}}) \gg \text{Lethal Autonomy}(I_{\text{buffer}}) \gg \text{Lethal Autonomy}(O) = 0 \tag{9.1}$$

This gradient is the physical enforcement of the hierarchy. F_{enforce} is granted superior armament precisely because they must be capable of overwhelming both the classes below them. Their status is strictly conditional; once a member of F_{enforce} is no longer physically useful, their QI is revoked, and they are discarded back into the Buffer Class or the Out-group.

Illustrative instantiation (Tier 2, three-tier lethal autonomy gradient). The three-tier gradient of eq. 9.1 is concretely anchored in statutory and historical law. At the top tier, the Law Enforcement Officers Safety Act (LEOSA, 18 U.S.C. § 926B) grants active and retired members of F_{enforce} the right to carry concealed firearms in all 50 states, superseding every state and local restriction: $\text{LA}(F) \approx 1.0$. At the intermediate tier, Buffer Class (I_{buffer}) carry is governed by state-specific permit regimes with varying requirements (from shall-issue to may-issue to constitutional carry) placing $\text{LA}(I) \in [0.3, 0.7]$ depending on jurisdiction. At the base tier, $O_{\text{racialized}}$ faces systematic disarmament through a layered statutory architecture: the Mulford Act (1967) banned open carry explicitly in response to Black Panther monitoring patrols California State Legislature 1967; the Sullivan Law (1911) established discretionary licensing designed to exclude immigrant and racialized populations from lethal autonomy New York State Legislature 1911; and felon-in-possession statutes (18 U.S.C. § 922(g)) apply asymmetrically through the racialized enforcement of the criminal pipeline above, effectively driving $\text{LA}(O) \to 0$. The gradient is therefore a structural invariant: each tier's lethal autonomy is calibrated to its position in the extraction hierarchy. **Confidence tier: Tier 2** — statutory text is definitive; the ordinal gradient is confirmed by the legal record but not continuously measured; $\rho_\tau \in [0.5, 0.7]$.

Primary statutory text (LEOSA and civil-rights enforcement). The statutory asymmetry referenced above appears directly in federal law: 18 U.S.C. § 926B (LEOSA) and the paired civil-rights statutes 18 U.S.C. § 241 and 18 U.S.C. § 242.

Primary text — Title 18, § 926B (OLRC via `nickvido/us-code`, tag `annual/2025`)

Source: https://uscode.house.gov/view.xhtml?req=granuleid:USC-prelim-title18&num=0&edition=prelim

§ 926B. Carrying of concealed firearms by qualified law enforcement officers

(a) Notwithstanding any other provision of the law of any State or any political subdivision thereof, an individual who is a qualified law enforcement officer and who is carrying the identification required by subsection (d) may carry a concealed firearm that has been shipped or transported in interstate or foreign commerce, subject to subsection (b).

(b) This section shall not be construed to supersede or limit the laws of any State that—

(1) permit private persons or entities to prohibit or restrict the possession of concealed firearms on their property; or

(2) prohibit or restrict the possession of firearms on any State or local government property, installation, building, base, or park.

(c) As used in this section, the term "qualified law enforcement officer" means an employee of a governmental agency who—

(1) is authorized by law to engage in or supervise the prevention, detection, investigation, or prosecution of, or the incarceration of any person for, any violation of law, and has statutory powers of arrest or apprehension under section 807(b) of title 10, United States Code (article 7(b) of the Uniform Code of Military Justice);

(2) is authorized by the agency to carry a firearm;

(3) is not the subject of any disciplinary action by the agency which could result in suspension or loss of police powers;

(4) meets standards, if any, established by the agency which require the employee to regularly qualify in the use of a firearm;

(5) is not under the influence of alcohol or another intoxicating or hallucinatory drug or substance; and

(6) is not prohibited by Federal law from receiving a firearm.

(d) The identification required by this subsection is the photographic identification issued by the governmental agency for which the individual is employed that identifies the employee as a police officer or law enforcement officer of the agency.

(e) As used in this section, the term "firearm"—

(1) except as provided in this subsection, has the same meaning as in section 921 of this title;

(2) includes ammunition not expressly prohibited by Federal law or subject to the provisions of the National Firearms Act; and

(3) does not include—

(A) any machinegun (as defined in section 5845 of the National Firearms Act);

(B) any firearm silencer (as defined in section 921 of this title); and

(C) any destructive device (as defined in section 921 of this title).

(f) For the purposes of this section, a law enforcement officer of the Amtrak Police Department, a law enforcement officer of the Federal Reserve, or a law enforcement or police officer of the executive branch of the Federal Government qualifies as an employee of a governmental agency who is authorized by law to engage in or supervise the prevention, detection, investigation, or prosecution of, or the incarceration of any person for, any violation of law, and has statutory powers of arrest or apprehension under section 807(b) of title 10, United States Code (article 7(b) of the Uniform Code of Military Justice).

Primary text — Title 18, § 241 (OLRC via `nickvido/us-code`, tag `annual/2025`)

Source: https://uscode.house.gov/view.xhtml?req=granuleid:USC-prelim-title18&num=0&edition=prelim

§ 241. Conspiracy against rights

If two or more persons conspire to injure, oppress, threaten, or intimidate any person in any State, Territory, Commonwealth, Possession, or District in the free exercise or enjoyment of any right or privilege secured to him by the Constitution or laws of the United States, or because of his having so exercised the same; or

Primary text — Title 18, § 242 (OLRC via `nickvido/us-code`, tag `annual/2025`)

Source: https://uscode.house.gov/view.xhtml?req=granuleid:USC-prelim-title18&num=0&edition=prelim

§ 242. Deprivation of rights under color of law

Whoever, under color of any law, statute, ordinance, regulation, or custom, willfully subjects any person in any State, Territory, Commonwealth, Possession, or District to the deprivation of any rights, privileges, or immunities secured or protected by the Constitution or laws of the United States, or to different punishments, pains, or penalties, on account of such person being an alien, or by reason of his color, or race, than are prescribed for the punishment of citizens, shall be fined under this title or imprisoned not more than one year, or both; and if bodily injury results from the acts committed in violation of this section or if such acts include the use, attempted use, or threatened use of a dangerous weapon, explosives, or fire, shall be fined under this title or imprisoned not more than ten years, or both; and if death results from the acts committed in violation of this section or if such acts include kidnapping or an attempt to kidnap, aggravated sexual abuse, or an attempt to commit aggravated sexual abuse, or an attempt to kill, shall be fined under this title, or imprisoned for any term of years or for life, or both, or may be sentenced to death.

The structural role of F_{enforce} is further revealed by a fact that most citizens find shocking when they first encounter it: **the police have no legal duty to protect you**. The Supreme Court has ruled (twice) that the Enforcement Class owes no constitutional obligation to protect individual citizens from harm, even when the danger is known and imminent. In *DeShaney v. Winnebago County* (1989), the Court held that the state has no affirmative duty to protect individuals from private violence, even a child whose

abuse the state had documented Supreme Court of the United States 1989. Chief Justice Rehnquist, for the majority, stated: "[N]othing in the language of the Due Process Clause itself requires the State to protect the life, liberty, and property of its citizens against invasion by private actors." *DeShaney*, 489 U.S. 189, 195 (1989). Justice Blackmun's dissent captured what the holding meant for the child: "Poor Joshua! Victim of repeated attacks by an irresponsible, bullying, cowardly, and intemperate father, and abandoned by *respondents* who placed him in a dangerous predicament and who knew or learned what was going on. . . ."[1] In *Town of Castle Rock v. Gonzales* (2005), the Court held that a woman had no enforceable right to police protection even when she held a restraining order against her estranged husband—who subsequently murdered their three children Supreme Court of the United States 2005. Justice Scalia, writing for the majority, held that a Colorado mandatory-arrest restraining order statute did not create a "property" interest in police enforcement enforceable under the Due Process Clause: "A well-established tradition of police discretion has long coexisted with apparently mandatory arrest statutes." *Castle Rock v. Gonzales*, 545 U.S. 748, 760 (2005) (Scalia, J.).[2]

Read these rulings through the framework and their logic becomes structurally transparent. F_{enforce} does not exist to protect the population. It exists to *enforce the extraction algorithm*. The legal doctrine confirms what the set-theoretic model predicts: the Enforcement Class serves E, not O or I_{buffer}. The population is told that the police exist for their safety; the case law says otherwise. The system that disarms the population (Chapter 18) simultaneously confirms, through its own judiciary, that the armed agents it deploys in their neighborhoods have no obligation to use that armament on their behalf. The asymmetry is total: F_{enforce} is armed, immune, and *not required to protect you*. You are disarmed, surveilled, and *not entitled to their protection*. The system is operating

[1] Blackmun, J., dissenting, *DeShaney v. Winnebago County Dep't of Social Servs.*, 489 U.S. 189, 213 (1989). Blackmun's dissent argued that once the state undertakes a "special relationship" with an individual (as the Winnebago DSS did with Joshua through documented visits and a removal that placed him back with his father) the Due Process Clause does impose an affirmative duty of protection. The majority's refusal to read a "special relationship" on the facts of *DeShaney* produced the doctrinal baseline that subsequent cases like *Castle Rock* extended to police enforcement duties.

[2] The framework reads the gendered specificity of *Castle Rock* as structurally important. Jessica Gonzales held a statutory instrument (a restraining order issued by a court of law) that was explicitly designed to compel police enforcement. The Court's holding that even this instrument creates no enforceable right reveals that the F_{enforce} discretion doctrine is not neutral: it operates against O_{gendered} most severely precisely when O_{gendered} is at greatest risk of lethal private violence. The system that disarms O_{gendered} (Chapter 8) simultaneously removes the duty to protect O_{gendered} from the private violence that weaponized disarmament enables. The two doctrines are not independent: they are the kinetic and enforcement sub-functions of the same extraction algorithm. *DeShaney* removes the affirmative duty; *Castle Rock* removes it even when a statutory instrument demands compliance. The combined holding produces a legal architecture in which the most vulnerable members of O_{gendered} have no right to arms and no right to enforcement protection—simultaneously.

exactly as designed.

The foundational inequality now extends to four tiers:

$$\text{Benefit}(E) \gg \text{Benefit}(F_{\text{enforce}}) > \text{Benefit}(I_{\text{buffer}}) > \text{Benefit}(O_{\text{racialized}}) \tag{9.2}$$

where $\text{Benefit}(F_{\text{enforce}})$ consists of Qualified Immunity (QI), enhanced lethal autonomy, and zero accountability to the populations they nominally serve.

Case Study: Police Killings and the Enforcement Benefit Hierarchy

Setup. Equation 9.2 specifies a strict benefit hierarchy across the four tiers of the extraction system. For the enforcement layer (F_{enforce}), the framework makes a testable prediction about the *distribution* of enforcement lethality: if the purpose of F_{enforce} is to protect E's extraction interests, leaving the population at large unprotected, then enforcement lethality should be concentrated at the bottom of the hierarchy—against $O_{\text{racialized}}$—and approach zero at the top. Per-capita police killing rates by racial group provide a direct, measurable operationalization of this prediction.

Data sources. Per-capita police killing data are drawn from the Mapping Police Violence dataset Mapping Police Violence 2024, which maintains the most comprehensive public database of police killings in the United States. Population denominators are from U.S. Census Bureau American Community Survey one-year estimates for 2013–2022 and Census Bureau population estimates for 2023–2024. Data cover 2013–2024 with breakdowns by race: Black, White, Hispanic, Native American, and Asian. Curated data are archived at `Paper/data/eq27_police_killings.csv`; computational results are reproducible via `Paper/scripts/eq27_police_killings.ipynb`.

Operationalization. The benefit hierarchy from Equation 9.2 is operationalized against per-capita killing rates as follows. $O_{\text{racialized}}$ is represented by Black and Native American populations, which the framework predicts to bear the highest enforcement lethality. I_{buffer} is represented by Hispanic and White (non-elite) populations, which the framework predicts to bear intermediate rates. F_{enforce} and E are predicted to bear near-zero lethality from their own enforcement apparatus by construction.

Numerical computation. Averaging across the full 2013–2024 period, the notebook yields the following per-capita killing rates (per million population): Black, 7.00; Native American, 6.55; Hispanic, 2.89; White, 2.33; Asian, 0.91. The Black-to-White per-capita

ratio averages 3.01 across the period. The Native American-to-White ratio averages 2.81. The $O_{\text{racialized}}$ tier average (Black and Native American combined) is 6.78 per million; the I_{buffer} tier average (Hispanic and White combined) is 2.61 per million—a ratio of approximately 2.6:1. At peak years (2015–2016), the Black per-capita rate exceeded 8 per million, while the White rate remained below 2.9 per million.

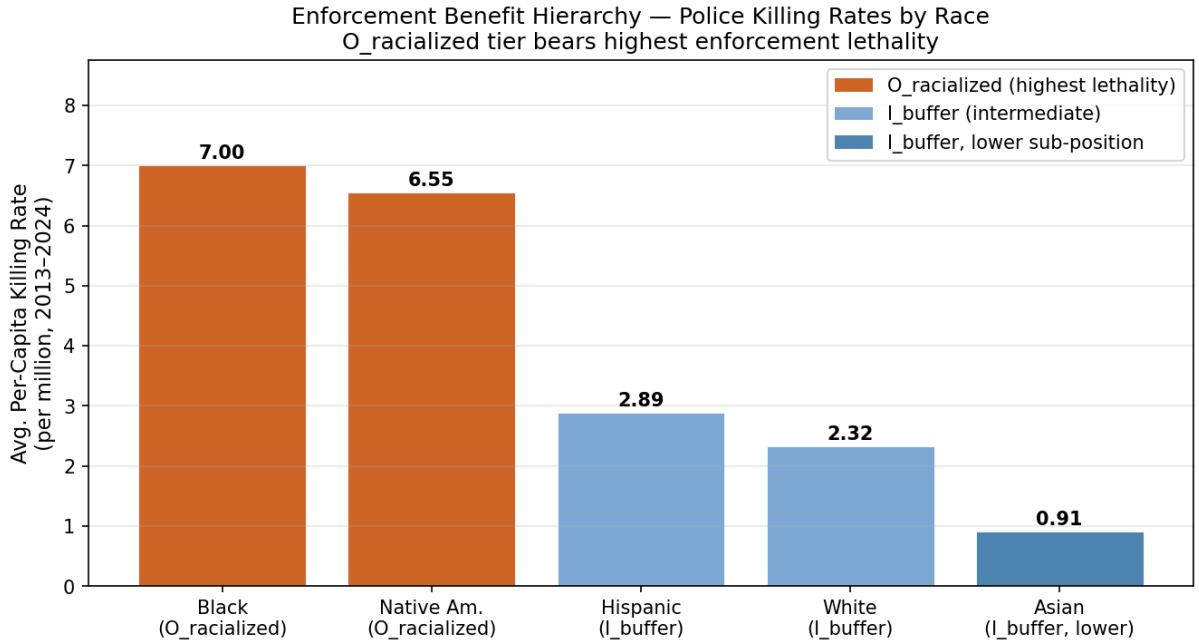


Figure 9.2: Police killing rates by racial group, 2013–2024 (per million population per year, Mapping Police Violence data). Groups are ordered by tier position: $O_{\text{racialized}}$ (Black, Native American) sustain the highest rates; I_{buffer} groups (Hispanic, White, Asian lower sub-position) cluster at intermediate rates. The monotonic hierarchy across all five groups confirms the tier-benefit ordering of eq. 9.2.

Comparison to prediction. Equation 9.2 predicts $\text{Benefit}(E) \gg \text{Benefit}(F_{\text{enforce}}) > \text{Benefit}(I_{\text{buffer}}) > \text{Benefit}(O_{\text{racialized}})$. Mapping this onto enforcement lethality (where lower benefit = higher lethality exposure), the predicted ordering is: $O_{\text{racialized}}$ killed at the highest rate, I_{buffer} at intermediate rates, F_{enforce} and E at near-zero. The data confirm the predicted ordering without exception: the Black per-capita rate (7.00) exceeds the Hispanic rate (2.89), which exceeds the White rate (2.33), which exceeds the Asian rate (0.91)—a monotonic hierarchy consistent with the framework's tier structure. The 3:1 Black-to-White ratio is stable across an 11-year period spanning multiple administrations, multiple policy changes, and the social disruption of 2020.

Falsification criteria. This equation would be falsified if per-capita police killing rates were uniform across racial groups—i.e., if enforcement lethality showed no systematic relationship to the predicted tier hierarchy. It would also be falsified if the rate for I_{buffer} exceeded the rate for $O_{\text{racialized}}$ across a sustained period, inverting the predicted hierarchy. The 2013–2024 data show neither condition. The Black-to-White gap has narrowed slightly from peak years (2015–2016) but has not closed, and in no year does the White per-capita rate approach the Black rate. The hierarchy is stable across the full measurement window.

Confidence tier. Tier 1. Eleven-year continuous dataset from a purpose-built tracking database; the racial hierarchy in per-capita killing rates is statistically stable across the full period; the ordering is consistent with the tier predictions of eq. 9.2 without requiring parameter calibration.

9.2.1 The Gang Morphology of the Enforcement Class

The claim that F_{enforce} operates as a structurally distinct caste (loyal to itself before the public it nominally serves) is empirically observable in the Enforcement Class's adoption of its own iconography, its documented formation of literal internal gangs, and its violent hostility toward any civilian who reminds them of their subordinate constitutional role.

Federal "criminal street gang" definition (contrast). For contrast with informal "gang" iconography inside enforcement institutions, Congress separately defines a *federal* criminal street gang in 18 U.S.C. § 521:

Primary text — Title 18, § 521 (OLRC via `nickvido/us-code`, tag `annual/2025`)

Source: https://uscode.house.gov/view.xhtml?req=granuleid:USC-prelim-title18&num=0&edition=prelim

§ 521. Criminal street gangs

(a) Definitions.— "conviction" includes a finding, under State or Federal law, that a person has committed an act of juvenile delinquency involving a violent or controlled substances felony. "criminal street gang" means an ongoing group, club, organization, or association of 5 or more persons—

(A) that has as 1 of its primary purposes the commission of 1 or more of the criminal offenses described in subsection (c);

(B) the members of which engage, or have engaged within the past 5 years, in a continuing series of offenses described in subsection (c); and

(C) the activities of which affect interstate or foreign commerce. "State" means a State of the United States, the District of Columbia, and any commonwealth, territory, or possession of the United States.

(b) Penalty.— The sentence of a person convicted of an offense described in subsection (c) shall be increased by up to 10 years if the offense is committed under the circumstances described in subsection (d).

(c) Offenses.— The offenses described in this section are—

(1) a Federal felony involving a controlled substance (as defined in section 102 of the Controlled Substances Act (21 U.S.C. 802)) for which the maximum penalty is not less than 5 years;

(2) a Federal felony crime of violence that has as an element the use or attempted use of physical force against the person of another;

(3) a Federal offense involving human trafficking, sexual abuse, sexual exploitation, or transportation for prostitution or any illegal sexual activity; and

(4) a conspiracy to commit an offense described in paragraph (1), (2), or (3).

(d) Circumstances.— The circumstances described in this section are that the offense described in subsection (c) was committed by a person who—

(1) participates in a criminal street gang with knowledge that its members engage in or have engaged in a continuing series of offenses described in subsection (c);

(2) intends to promote or further the felonious activities of the criminal street gang or maintain or increase his or her position in the gang; and

(3) has been convicted within the past 5 years for—

(A) an offense described in subsection (c);

(B) a State offense—

(i) involving a controlled substance (as defined in section 102 of the Controlled Substances Act (21 U.S.C. 802)) for which the maximum penalty is not less than 5 years' imprisonment; or

(ii) that is a felony crime of violence that has as an element the use or attempted use of physical force against the person of another;

(C) any Federal or State felony offense that by its nature involves a substantial risk that physical force against the person of another may be used in the course of committing the offense; or

(D) a conspiracy to commit an offense described in subparagraph (A), (B), or (C).

The Thin Blue Line Flag: A Gang Identifier

Sociologically, gangs are defined in part by shared symbols, group loyalty superseding institutional norms, and hostility toward outsiders. The "Thin Blue Line" flag (a black-and-white American flag bisected by a single blue stripe) meets every criterion. It emerged

as a mass-adopted identity marker explicitly in opposition to the Black Lives Matter movement (post-2014), functioning as an *oppositional identity symbol*: its wearers define themselves *against* accountability. The flag signals unconditional in-group loyalty, and social penalties attach to members of F_{enforce} who refuse to display it. Some departments (including San Francisco) have banned the flag on duty, recognizing that it had become a politically charged tribal marker Skolnick 1966.

The flag's ideological function is revealing: F_{enforce} has replaced the national flag (the symbol of the constitutional republic they swore to serve) with their own. The image declares a parallel sovereignty. The Enforcement Class signals, in plain iconography, that their primary allegiance is to the blue caste, not to the public.

Literal Gang Formation: The LASD Proof

The Los Angeles County Sheriff's Department provides the most extensively documented case of literal gang formation within the Enforcement Class. Over five decades, named deputy gangs (the **Lynwood Vikings**, the **Banditos**, the **Executioners**, the **Reapers**, and others) have operated within LASD stations with matching tattoos, initiation rituals, and internal hierarchies indistinguishable from street gangs.

The Lynwood Vikings were found by a federal jury to be a "neo-Nazi, white supremacist gang" within the department (*Thomas v. County of Los Angeles*, 1991). The Banditos, based at the East Los Angeles Station, allegedly demanded "taxes" (a portion of other deputies' overtime pay) controlled work assignments, and physically assaulted deputies who refused to comply. The Executioners, at the Compton Station, allegedly required deputy-involved shootings as a prerequisite for full membership, with members celebrating kills Commission 2022.

In 2022, the Los Angeles County Civilian Oversight Commission confirmed that deputy gangs had existed within the LASD for over fifty years and that the department had structurally failed to eradicate them. California was forced to pass Assembly Bill 958 (2021), requiring law enforcement agencies to maintain policies against gang participation—the state legislature effectively acknowledging that the Enforcement Class had to be *legally prohibited* from operating as organized criminal enterprises.

The NYPD exhibits analogous patterns without the formal tattoo structure. The Mollen Commission (1994) documented organized crews of officers (particularly in the 30th Precinct in Harlem, known as the "Dirty Thirty") who engaged in systematic drug trafficking, robbery, and perjury, enforcing silence through threats and retaliation against whistleblowers.

The First Amendment Audit Proof: Hostility Toward Public Accountability

Perhaps the most accessible, real-time evidence of the Enforcement Class's caste psy-

chology is provided by the First Amendment auditing community. Independent journalists and citizen auditors—documented extensively by channels such as *Long Island Audit* (Sean-Paul Reyes), *Delete Lawz* (Chille DeCastro), and the analytical channel *Audit the Audit*—exercise the constitutionally protected right to film in public spaces: post offices, police station lobbies, town hall meetings, and public sidewalks.

Federal case law is unambiguous: filming government officials performing their duties in public spaces is protected by the First Amendment (*Glik v. Cunniffe*, 655 F.3d 78, 1st Cir. 2011; *Turner v. Driver*, 848 F.3d 678, 5th Cir. 2017). Across thousands of documented encounters, the single statement most likely to escalate a lawful interaction into a detention or arrest is some variation of: "You work for me," "You're a public servant," or "This is a public building paid for with my taxes." Officers respond to these *factually accurate, constitutionally protected statements* with visible rage, unlawful orders to stop filming, demands for identification without reasonable suspicion, and retaliatory arrest.

This pattern is diagnostic. The Enforcement Class's violent allergic reaction to being reminded of its public-servant status reveals the depth of the caste inversion. F_{enforce} experiences itself as sovereign over the citizenry. The auditing community has inadvertently constructed the largest decentralized empirical dataset proving that the Enforcement Class operates with a self-conception fundamentally incompatible with democratic governance. They are an occupying force that occasionally tolerates the public.

9.3 The Asymmetric Distribution of Lethal Autonomy: The Second Amendment and the Haitian Proof

Within the framework of systemic oppression, the United States Constitution's Second Amendment provides the most stark example of a system functioning exactly as programmed, despite its ideological justification (Component 3). Nominally presented as a universal safeguard against tyranny, the Second Amendment was engineered by the Elite (E_{US}) with a specific, exclusionary "bug." Its functional purpose was the asymmetric distribution of lethal autonomy.

Mathematically, the right to bear arms was granted to the Buffer Class ($I \setminus E$) specifically to empower the "well-regulated militias"—which, in the Southern operational zone, were explicitly the slave patrols. Lethal autonomy was distributed to the In-group for the sole purpose of enforcing the physical boundaries of the Out-group (O).

9.3.1 The Constitutional Dialectic: Natural Rights and Restricted Recognition

The framework's critique of the Second Amendment requires an explicit methodological concession absent from the surrounding literature. The left-coded and right-coded interpretations of the American constitutional order are *both structurally correct*. Each reading captures one structural variable; the true interpretation compiles both.

The originalist reading (ontology of the right). The originalist / right-coded interpretation correctly identifies that the Second Amendment recognizes a pre-existing right to keep and bear arms. The Framers took this right to pre-exist the state itself—grounded in the Lockean natural-rights tradition that the Declaration of Independence had already encoded as self-evident ("unalienable Rights"), and in the explicit constitutional mandate that a tyrannical government can and must be overthrown. On this reading, the right is pre-political. It belongs to every human being by virtue of being a human being. The state's only constitutional role is the recognition and non-infringement of what was already there. The originalists are telling the truth about the *ontology* of the right.

The expansionist reading (scope of recognition). The left-coded / expansionist interpretation correctly identifies that the operational scope of that recognition was engineered to be narrow. The system *recognized* these pre-existing natural rights exclusively for white, propertied, male members of the In-group. The same text that the originalist reads as universal was compiled, in practice, for a demographically bounded class. The Constitution's stated spirit ("We the People," "all men," "unalienable") pointed unmistakably toward universal application. The Framers' operational code restricted recognition to themselves. The expansionists are telling the truth about the *scope* of recognition.

The synthesis. The framework resolves the apparent contradiction by separating these two variables. Let $R_{\text{natural}}(x)$ denote the pre-political natural right to kinetic self-defense possessed by every human x, and let $S_{\text{recognition}}(x, t)$ denote whether the state formally recognizes that right for individual x at time t. The Framers' constitutional architecture is the assertion:

$$\forall x \in \text{Humans} : R_{\text{natural}}(x) = \text{TRUE} \quad \wedge \quad S_{\text{recognition}}(x, 1791) = \mathbf{1}[x \in I_{\text{propertied, white, male}}]. \tag{9.3}$$

The originalist reads the first conjunct and concludes the right is universal. The expansionist reads the second conjunct and concludes the right is a class privilege. *Both are correct.* The paper's entire argument is that liberation under this constitutional order requires forcing the second conjunct to converge on the first. The domain of $S_{\text{recognition}}$ must

be expanded until it equals the domain of R_{natural}. That is the operation the Out-group has been forcing, kinetically and legally, for two and a half centuries.

The Framers knew exactly what they were doing. The dialectic above is a description of what the Framers consciously engineered. These men were the architects of a *deliberately genocidal slave state*—a political economy built on chattel slavery, continental-scale Indigenous dispossession, and the near-total disarmament of the populations they were extracting from. The design was intentional.

This matters because it forecloses the sentimental reading in which the Second Amendment's exclusionary compilation was a regrettable oversight that history has been slowly correcting. If the Framers designed a system whose survival required asymmetric lethal capacity ($L_E \gg L_O$), they understood the Second Amendment's structural function with engineering precision. A man who builds a slave state arms the slaves deliberately. He articulates, in the Declaration, a philosophical justification for armed overthrow of tyranny that would (if universalized) terminate his own operation. He writes those words *while knowing* they would terminate his operation if the recognition domain were ever expanded to include the people he was enslaving. The Framers' genius and the Framers' horror are the same fact: they understood the Second Amendment's meaning completely, and they installed it anyway, with the recognition domain restricted to themselves.

This is the only reading that makes their subsequent terror of Haiti computationally coherent. If the Framers had believed, as the sentimentalist reconstruction claims, that the Second Amendment was a narrowly civic provision about militia regulation, the Haitian Revolution would have registered as a foreign disturbance of marginal structural relevance. It did not. It produced an immediate, multi-decade continental panic (documented in § 9.3.2 and § 20.3.1), culminating in the Louisiana Purchase, the Negro Seamen Acts, the quarantining of Haitian diplomatic recognition, and the *Dred Scott* security patch of 1857. The American Elite's response was the correct magnitude of response for men who knew exactly what they had designed. They had written the anti-tyranny protocol. They had seen the Haitians compile and execute it. They understood, in real time, that their own constitutional architecture, executed without the racist parameters installed by the colonial Elite, would destroy them. Their panic registered recognition.

The remainder of this section formalizes that recognition.

9.3.2 The Haitian Instantiation: Executing the "Pure" Code

The ultimate proof of this structural hypocrisy occurred contemporaneously in Saint-Domingue. The Haitian Revolution (1791-1804) was essentially a perfect, real-world

instantiation of the core philosophy of the Second Amendment. An armed, subjugated populace recognized a tyrannical, extractive government and utilized lethal force to violently dismantle it.

The global Elite (E_{global}) classified Out-group execution of the protocol as a catastrophic system error. An In-group execution would have been recognized as a triumph of liberty. The Haitian Revolution was the Second Amendment compiled and run without the racist parameters installed by the colonial Elite. It demonstrated that if the Out-group achieves lethal parity, the Predatory Min-Max Function completely collapses.

9.3.3 The Christiana Proof: The Anti-Tyranny Protocol Executes on American Soil (1851)

The Haitian scenario replicated domestically. It happened in Pennsylvania.

On September 11, 1851, Maryland slaveholder Edward Gorsuch arrived at the farmhouse of **William Parker** (a formerly enslaved man living free in Christiana, Pennsylvania) accompanied by a deputy U.S. Marshal, his son, and several slave catchers. They came to recapture four men who had escaped from Gorsuch's plantation, armed with the full legal authority of the **Fugitive Slave Act of 1850**, which compelled citizens of free states to assist in the capture of escaped enslaved people and denied the accused any right to trial by jury Slaughter 1991; Project 1851.

Parker refused to comply. His wife Eliza sounded a horn from the upper window, alerting the surrounding community. Within the hour, dozens of free Black residents (joined by several white Quaker neighbors) surrounded Gorsuch's party with firearms, corn cutters, and clubs. When Gorsuch refused to withdraw, a firefight erupted. Edward Gorsuch was killed. His son was badly wounded. The deputy U.S. Marshal fled. The four freedom seekers escaped to Canada through the Underground Railroad. Parker followed them.

The federal government's response revealed the system's deepest fear. President Fillmore dispatched a company of U.S. Marines and a posse of federal marshals to Christiana and charged **41 defendants** (Black and white) with **treason** against the United States. *Treason*—the most severe charge in the federal code, carrying the death penalty. The government argued that armed resistance to the Fugitive Slave Act constituted "levying war" against the nation Slaughter 1991.

The treason trial of Castner Hanway (a white Quaker miller who had merely refused to assist the slave catchers) became a national spectacle. His defense was led by Thaddeus Stevens, the abolitionist congressman. The jury acquitted Hanway in **fifteen minutes**.

The government quietly dropped all remaining charges.

Read Christiana through the framework. The Out-group compiled the anti-tyranny protocol (the same code Haiti had executed) on domestic soil. A free Black community armed itself, organized collective defense, and killed a slaveholder who arrived backed by federal law. The system's response was the charge of *treason*—the legal instrument reserved for existential threats to the state. The message was structural: when $O_{\text{racialized}}$ exercises the kinetic guarantee against E's enforcement apparatus, the system does not process it as self-defense. It processes it as war.

Six years later, Chief Justice Taney would articulate the precise fear that Christiana had instantiated.

9.3.4 Weaponizing Disarmament: The Dred Scott Proof and the Elite's Security Patch

Observing the success of the Haitian model (and its domestic replication at Christiana) the American Elite panicked. If the Out-group (O) internalized the true logic of the Second Amendment, the domestic extraction engine would be destroyed. The systemic necessity to disarm the Out-group was explicitly articulated by the Elite's highest judicial authority in the 1857 *Dred Scott v. Sandford* decision.

In his majority opinion, Chief Justice Roger Taney ruled that Black Americans could not be citizens. To justify this, he revealed the core algorithmic fear of the Elite: if Black people were granted citizenship, it would entitle them to the full privileges of the In-group, which would give them the right "to keep and carry arms wherever they went"—"inevitably producing discontent and insubordination among them, and endangering the peace and safety of the State." *Dred Scott v. Sandford*, 60 U.S. 393, 416–417 (1857) Supreme Court of the United States 1857.

Taney's opinion acts as a formal, legal admission of the system's design. The Elite (E_{US}) understood that an armed Out-group was an existential threat to capital. Consequently, they weaponized the law to aggressively disarm Black Americans.

This initiated an unbroken historical algorithm of racialized disarmament. From the antebellum Black Codes that made it a severe crime for any Black person (free or enslaved) to own a firearm, to the post-Civil War disarmament sweeps by white terror groups, and culminating in modern gun control legislation (such as the Mulford Act of 1967, passed explicitly to disarm the Black Panthers), the system has constantly generated new proxy variables (P) to restrict the Out-group's access to self-defense.

Within this framework, the Second Amendment operates on a strict dual-track algo-

rithm:

- When the Buffer Class ($I \setminus E$) arms itself, the system recognizes it as a constitutionally protected expression of liberty.
- When the Out-group (O) arms itself, the system triggers an immediate threat response, reclassifying the behavior as "criminality" or "rebellion," thereby legally authorizing the deployment of the policing enforcement mechanism.

The history of American gun control is, therefore, a continuously updated security patch engineered by the Elite to prevent the domestic Out-group from ever replicating the Haitian instantiation of true autonomy.

9.3.5 The Physical Guarantee: The Second Amendment as Collateral

Traditional analyses of the Second Amendment often limit its utility to either the preservation of a national militia or the localized enforcement of slave patrols. Within the framework of the Predatory Min-Max Function, the asymmetrical distribution of lethal autonomy served a much deeper structural purpose: it was the Elite's (E) physical collateral to underwrite the 1705 contract.

When the Elite partitioned the poor and created the Buffer Class (I_{buffer}), they required absolute assurance that this new working-class In-group would permanently side with Elite interests over cross-class solidarity with the Out-group (O). The psychological wage (ψ) of "Whiteness" was insufficient on its own; I_{buffer} required a tangible guarantee that they would never be subjected to the extraction kernel.

The Second Amendment, particularly when philosophically paired with the Declaration of Independence's mandate to overthrow tyrannical governments, functioned as this guarantee. By legally distributing lethal parity to the Buffer Class, the Elite formalized a transactional promise: "We guarantee you will never become slaves, and to prove it, we are handing you the physical tools to violently destroy us if we ever attempt to treat you as the Out-group." It was the ultimate systemic pacifier, convincing I_{buffer} that they held the ultimate veto over Elite power, effectively ensuring their complicity in the subjugation of O.

The guarantee derived its force from proximity. The Buffer Class's alignment with the Second Amendment was underwritten by direct, daily knowledge of exactly what they were being guaranteed against. The plantation was visible. The horror was documented, witnessed, and understood—across the fence line, in the fields, in the quarters. When

the 1705 contract promised I_{buffer} that they would never be subjected to the extraction kernel, it pointed at something specific—something I_{buffer} could see from the road. The consequence is that the Buffer Class's constitutional alignment was a terror-anchored commitment: they would protect the system that produced those horrors because the system's continued operation was proof that those horrors would bypass them. Any threat to the system was experienced as a threat to that guarantee. This explains the intensity that the framework's kinetic analysis must account for: a population defending a witnessed boundary between themselves and what they knew was on the other side of it.

The Necessary Condition Theorem (Section 4.4.1) reveals the structural inversion beneath this arrangement. The Second Amendment is framed as E protecting I_{buffer}: the Elite gifting the Buffer Class the tools to resist tyranny. The demographic mathematics of the antebellum system invert this framing. The Elite could not maintain $M(t) < \tau$ without K_B. The weapons were a *payment* to the Buffer Class for the service the Elite desperately required: the daily enforcement of a system that would have collapsed the moment the numerically superior, armed buffer class turned those weapons toward liberation and away from suppression. The Second Amendment was the Elite purchasing the necessary condition of their own survival—and constructing a narrative in which the Buffer Class believed the transaction ran the other way.

9.3.6 Arms as a Joint Material and Psychological Wage

Arms occupy the material channel of the complex wage. Arms are the only class of property the Constitution names as the object of a guaranteed right to possess: the people's right to "keep" them. The Constitution names houses only to shield them from quartering and search, and it lets Congress secure writings and discoveries as a legislative power; neither text guarantees a right to own the thing named. The Second Amendment recognizes a right held by "the people" and bars government infringement. *United States v. Cruikshank* described this right as prior to the Constitution and held that the Second Amendment restricted federal power while leaving state interference beyond federal protection at that time Supreme Court of the United States 1876.

The guarantee attached to "the people," a category that the governing legal order compiled as white. Taney's *Dred Scott* opinion exposed the boundary by treating Black citizenship as a route to the right "to keep and carry arms wherever they went" Supreme Court of the United States 1857. Arms therefore functioned as property and as proof of recognized membership. The arms boundary entered the statute books first. Act X of the January 1639/40 Grand Assembly ordered "all persons except negroes to be provided

with arms and amunition" Hening 1823. The 1705 Act concerning Servants and Slaves forbade any slave to "go armed with gun, sword, club, staff, or other weapon" without written leave Hening 1705, and the 1738 militia act armed every listed man "except free mulattos, negros and Indians," who "shall appear without arms; and may be emploied as drummers, trumpeters, or pioneers, or in such other servile labour" Hening 1738. The status side of the arms wage was therefore installed as an exclusion sixty-five years before the 1705 contract paired it with deputized authority. The same 1705 act made the material side of the wage literal. Section XIII required every master to pay each imported male servant without yearly wages, at the end of his term, "ten bushels of indian corn, thirty shillings in money, or the value thereof, in goods, and one well fixed musket or fuzee, of the value of twenty shillings, at least"; women servants received corn and money and no musket Hening 1705. The 1705 contract joined the material possession of arms, $\psi_m > 0$, to deputized authority over the racial boundary, $\psi_s > 0$. This joint wage occupies Quadrant I. Figure 9.3 places it illustratively near 45°; the position is Tier 3 ordinal and asserts no historical value for θ.

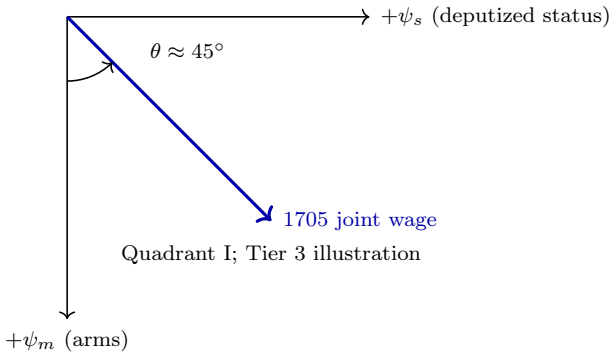


Figure 9.3: **Arms as a Joint Wage.** Material possession and deputized status are positive components of one 1705 collateral package.

Compulsory militia and slave-patrol service placed the same institution in Quadrant II. The Buffer Class supplied unpaid labor, exposure, and physical risk through the negative material component $\psi_m < 0$, while deputized command over the Out-group supplied the positive status component $\psi_s > 0$ Hadden 2001. The patrol-expenditure series in Section 2.3.2 and Figure 2.4 records the Elite's budget for maintaining that deputized system as extraction expanded. The joint wage and the compulsory service burden therefore coexist inside a single enforcement institution.

The people as the linchpin. Gun control that survives constitutional challenge operates through the legal boundary around "the people." The felon-in-possession bar

in 18 U.S.C. § 922(g)(1), enacted through the Gun Control Act of 1968, combines with the War on Drugs' racially disparate felony-conviction pipeline U.S. Congress 1968; Alexander 2010. The resulting felony-disqualification architecture preserves a quasi-boundary around the Out-group's capacity to accumulate arms. The proxy is criminal status; its distribution carries the racial partition forward after explicit racial disarmament became legally vulnerable.

Dual erosion in the present. The status component ψ_s is eroding as the arms boundary between the Buffer Class and the Out-group loses definition. Black women form the fastest-growing cohort of new owners documented in Section 8.2.3 National Shooting Sports Foundation 2021; Buggs et al. 2022. Parity in arms makes the shared structural position visible. The material component ψ_m is also eroding: current bans target rifles such as the AR-15, whose kinetic utility includes resistance to state force. Rifles of every type accounted for 357 of the 13,343 murder victims the FBI recorded in 2025 (2.7 percent), fewer than the 623 killed with hands, fists, or feet and roughly one quarter of the 1,475 killed with knives Federal Bureau of Investigation 2026.

Both components of the 1705 collateral consequently decay at once. Under the Necessary Condition Theorem (Section 4.4.1), the Elite depends on the Buffer Class's continued enforcement labor and its separation from the Out-group. The visible shared position supplies the precondition for cross-class coherence. Erosion in ψ_m weakens the collateral; erosion in ψ_s weakens the partition that directs kinetic capacity away from the kernel.

Kinetic-channel calibration. A two-series anchor can calibrate the enforcement/kinetic channel of the complex wage. The ψ_m series measures the Buffer Class's legal access to classes of arms over time. The ψ_s series measures the access differential between the Buffer Class and the Out-group, preserving the relational definition of status. The anchor's scope excludes land, wages, and schooling; those channels require their own observables. The statutory access series is Tier 2 where enacted law and dated classifications supply direct measurements. The historical tier differential and its phase interpretation remain Tier 3 ordinal.

9.3.7 The General Strike of the Enslaved: Du Bois's Proof of Out-Group Kinetic Agency

The preceding analysis has located the Civil War as the kinetic rupture that forced the 13th Amendment. The standard historiography frames this rupture as a gift from above:

Lincoln's executive intervention ending slavery. W.E.B. Du Bois's *Black Reconstruction in America* is the definitive refutation of that framing W.E.B Du Bois 1935.

Du Bois's fourth chapter, "The General Strike," documents what the conventional narrative systematically erases: beginning in 1861 and accelerating through 1864, approximately 500,000 enslaved people exercised the only kinetic option available to them and walked off the plantations. They did not wait for emancipation. They emancipated themselves—streaming into Union lines, overwhelming contraband camps, supplying military intelligence that no Northern spy network could replicate, and withdrawing the labor force that was the Confederacy's logistical foundation. Du Bois calculated that this mass self-emancipation constituted, in structural terms, a **general strike**: the coordinated withdrawal of labor by an entire class, executed without formal organization, against a system that had made organization criminally impossible.

The strategic consequences were irreversible. The Confederacy's war machine depended on enslaved labor for agriculture, fortification-building, supply transport, and the full logistics of fielding an army. As the general strike scaled, Confederate productive capacity collapsed faster than Union military operations could have achieved. Lincoln's Emancipation Proclamation (1863)—documented in the Concession Theorem (Section 19.2) as a military strategy—was the Union government's institutional recognition of a fact $O_{\text{racialized}}$ had already created on the ground. The Out-group broke the algorithm's grip unilaterally, and the algorithm's legal interface was subsequently rewritten to accommodate that fact.

The framework must integrate this proof explicitly. The Haitian Theorem (Section 19.7) establishes kinetic action as the only historically validated liberation mechanism at the colonial scale. The general strike establishes that the same mechanism operated domestically—that the kinetic capacity of $O_{\text{racialized}}$, exercised collectively and without waiting for elite authorization, is what forced the system update. The 13th Amendment, which follows immediately below, was the Elite's recompilation around the Out-group's successful kernel breach. Understanding the sequence in this order (kinetic Out-group action first, legal patch second) is essential to the framework's predictive architecture.

9.4 The System Kernel: The 13th Amendment Loophole (1865)

Following the Civil War, the system required a new legal kernel. The **13th Amendment** converted slavery from a static identity to a conditional state via the exception clause: *"except as a punishment for crime"* Alexander 2010; Blackmon 2008; DuVernay 2016.

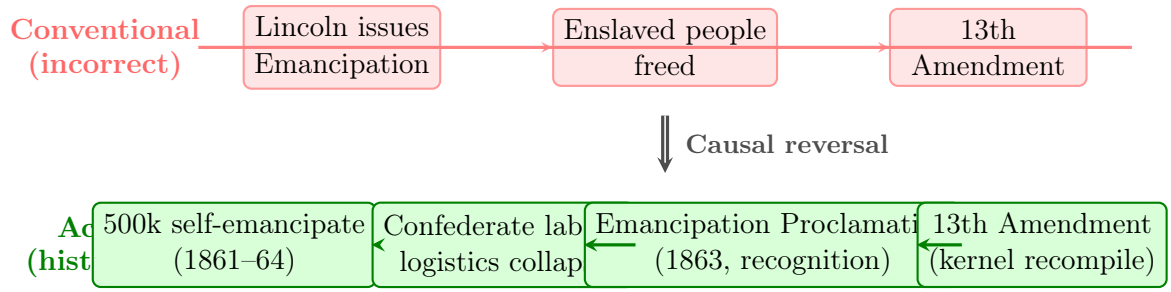


Figure 9.4: **The General Strike: Causal Timeline Reversal.** The conventional framing (top) assumes legal decree produced social change. The historical evidence (bottom) reveals that out-group kinetic action (the General Strike) collapsed the existing system's logistics, forcing the legal apparatus to recognize the new reality through the Emancipation Proclamation and the subsequent 13th Amendment patch.

$$\text{If} \quad \text{Status}(x) = \text{Criminal}(C) \quad \rightarrow \quad \text{Status}(x) \in S \text{ (Slave)} \tag{9.4}$$

This[3] ensured that slavery remained a constitutionally protected state, accessible to the Elite as long as they could map the target population to the variable of Criminality (C).

The statutory contradiction. Federal law nominally criminalizes involuntary servitude under 18 U.S.C. § 1581 (Peonage) and 18 U.S.C. § 1589 (Forced labor). The 13th Amendment's exception clause simultaneously permits it for the incarcerated:

Primary text — Title 18, § 1581 (Peonage) (OLRC via `nickvido/us-code`, tag `annual/2025`)

Source: https://uscode.house.gov/view.xhtml?req=granuleid:USC-prelim-title18&num=0&edition=prelim

§ 1581. Peonage; obstructing enforcement

(a) Whoever holds or returns any person to a condition of peonage, or arrests any person with the intent of placing him in or returning him to a condition of peonage, shall be fined under this title or imprisoned not more than 20 years, or both. If death results from the violation of this section, or if the violation includes kidnapping or an attempt to kidnap, aggravated sexual abuse or the attempt to commit aggravated sexual abuse, or an attempt to kill, the defendant shall be fined under this title or imprisoned for any term of years or

[3]This equation is classified as Tier 3 (ordinal/structural); the conditional re-enslavement via criminal conviction is a structural claim validated by the convict leasing system documented in Blackmon (2008) Blackmon 2008 and the mass incarceration data in Alexander (2010) Alexander 2010. See the Empirical Methodology chapter (p. lxv) and the Empirical Validation Index.

life, or both.

(b) Whoever obstructs, or attempts to obstruct, or in any way interferes with or prevents the enforcement of this section, shall be liable to the penalties prescribed in subsection (a).

Primary text — Title 18, § 1589 (Forced labor) (OLRC via `nickvido/us-code`, tag `annual/2025`)

Source: https://uscode.house.gov/view.xhtml?req=granuleid:USC-prelim-title18&num=0&edition=prelim

§ 1589. Forced labor

(a) Whoever knowingly provides or obtains the labor or services of a person by any one of, or by any combination of, the following means—

(1) by means of force, threats of force, physical restraint, or threats of physical restraint to that person or another person;

(2) by means of serious harm or threats of serious harm to that person or another person;

(3) by means of the abuse or threatened abuse of law or legal process; or

(4) by means of any scheme, plan, or pattern intended to cause the person to believe that, if that person did not perform such labor or services, that person or another person would suffer serious harm or physical restraint, shall be punished as provided under subsection (d).

(b) Whoever knowingly benefits, financially or by receiving anything of value, from participation in a venture which has engaged in the providing or obtaining of labor or services by any of the means described in subsection (a), knowing or in reckless disregard of the fact that the venture has engaged in the providing or obtaining of labor or services by any of such means, shall be punished as provided in subsection (d).

(c) In this section:

(1) The term "abuse or threatened abuse of law or legal process" means the use or threatened use of a law or legal process, whether administrative, civil, or criminal, in any manner or for any purpose for which the law was not designed, in order to exert pressure on another person to cause that person to take some action or refrain from taking some action.

(2) The term "serious harm" means any harm, whether physical or nonphysical, including psychological, financial, or reputational harm, that is sufficiently serious, under all the surrounding circumstances, to compel a reasonable person of the same background and in the same circumstances to perform or to continue performing labor or services in order to avoid incurring that harm.

(d) Whoever violates this section shall be fined under this title, imprisoned not more than 20 years, or both. If death results from a violation of this section, or if the violation includes kidnaping, an attempt to kidnap, aggravated sexual abuse, or an attempt to kill, the defendant shall be fined under this title, imprisoned for any term of years or life, or both.

9.4.1 The Interface Swap: Why "Progress" Escalates Brutality

When observing the historical timeline, the transition from chattel slavery to convict leasing following the 13th Amendment is conventionally framed as moral progress. Under the mathematical framework of systemic extraction, we must evaluate the reality on the ground: an interface swap often removes the few physical constraints the Elite previously had, thereby escalating the brutality.

Under chattel slavery, the Elite (E) had a direct financial investment in the biological survival of the enslaved worker. Destroying the asset entirely would have represented a loss of capital even under absolute extraction. This created a dark, but functional, biological ceiling on the extraction rate.

When the system updated its interface to convict leasing (utilizing the constitutional loophole to transition the Out-group into carceral slavery) this capital constraint was permanently removed. The Elite no longer owned the bodies; they simply leased the labor from the State. Because the carceral system, fed by the newly minted Black Codes, provided an infinite, subsidized stream of replacement bodies, the Elite had zero financial incentive to keep the laborers alive. The optimal economic strategy shifted to extracting maximum labor in minimum time, even if it resulted in the death of the worker. Consequently, mortality rates in convict leasing camps frequently exceeded those of chattel slavery. The "upgrade" to the system did not mitigate the extraction kernel; it optimized the brutality by socializing the cost of replacing the human capital.

This finding confirms the escalation thesis. Economic historians document measurably higher output-per-worker in targeted sectors (Alabama coal mines, railroad construction, turpentine and phosphate extraction) under convict leasing than under antebellum chattel slavery. Daily quotas increased; absenteeism fell; piece-rate throughput accelerated. These efficiency gains are the *mechanism* of the interface swap's escalatory effect. Elevated mortality and elevated throughput are two simultaneous measurements of the same removed constraint. When replacement cost is driven to zero by state subsidy ($\text{Cost}_{\text{replacement}} \to 0$), the lessee's rational strategy is to extract the maximum possible output per unit time

until the biological asset is consumed—and then draw the next body from the pipeline. The result is that E records higher throughput *and* O records higher mortality because the same removed constraint produces both. Both are products of the same optimization: $\Delta_{\max}$ preserved and expanded by treating the Out-group as a fully disposable input. Any analysis that cites productivity gains as a qualification of the brutality claim has measured the Elite's ledger and forgotten to measure the cost at which it was balanced.

9.4.2 The Culling Variable: Consumptive Extraction and Demographic Control

To fully understand the brutality of the post-1865 algorithmic update, we must evaluate convict leasing as a deliberate demographic culling of the racialized Out-group ($O_{\text{racialized}}$).

Under the pre-1865 interface (chattel slavery), the Out-group was legally classified as capital. Consequently, the Elite (E) possessed a direct financial imperative to manage the mortality rate (M) of the enslaved population. The conditions were horrific; destroying the asset entirely would have represented a loss of wealth on the Elite's ledger. The algorithm required extraction to remain just below the threshold of biological collapse.

The 13th Amendment Loophole effectively externalized the cost of mortality. By shifting the Out-group from "owned capital" to "leased state property," the Elite achieved a terrifying economic freedom: they no longer bore the replacement cost of the human beings they worked to death. Because the newly implemented Black Codes—the P_{criminal} proxy—guaranteed a continuous, subsidized pipeline of replacement bodies, the functional constraint on mortality was permanently deleted from the source code.

Within the Tri-Modal Enclosure Model (Equation 0.5), the Black Codes and the 13th Amendment exception clause constituted an **enclosure repair** executed after Abolition had briefly opened all three channels. Emancipation threatened to lower e_1 (communal capacity) by permitting freedpeople to build schools, churches, and mutual-aid societies; to lower e_2 (geographic/economic mobility) by removing the legal barriers to movement and contract; and to lower e_3 (psychological/epistemic autonomy) by allowing Black civic participation and the very act of self-naming as citizens. The Black Codes reversed each of these gains: vagrancy laws and curfews tightened e_2; the destruction of Reconstruction-era institutions (Freedmen's Bureau schools, Black banks, elected Black officials) tightened e_1; and the reimposition of white judicial supremacy tightened e_3 by teaching the population that even formal freedom remained contingent on white consent. The enclosure score $\mathcal{S}_{\text{enc}}(O_{\text{racialized}})$, which had momentarily dropped after 1865, was driven back toward 1.0 within a single decade.

Mathematically, the extraction kernel evolved into a **Consumptive Extraction Function**. The optimal economic strategy for the lessee was to extract maximum caloric and physical labor in the absolute minimum time, fully consuming the biological asset until death, and then simply leasing a replacement.

This hyper-lethal environment (where annual mortality rates in certain mining and railroad camps routinely exceeded 30 to 40 percent) was a dual-purpose optimization by the Elite:

1. **Maximum Profit:** It generated unprecedented profit margins by reducing overhead (food, medical care, shelter) to near-zero.

2. **Demographic Culling:** It solved the nascent threat of the Demographic Paradox (Section 6.6). The physical elimination of thousands of working-age men from $O_{\text{racialized}}$ functioned as a brutal population control mechanism. By literally working a massive segment of the Out-group to death, the system neutralized the political and demographic threat of a newly emancipated populace before they could achieve operational solidarity or electoral power.

Convict leasing, therefore, constituted an algorithmic escalation. It transformed the extraction engine into a meat grinder, utilizing state-sponsored criminalization to legally cull a population that the Elite needed to control without directly owning.

9.4.3 The Transition Function: Forced Industrialization of the South

The preceding subsections document convict leasing as a labor extraction system and a demographic culling mechanism. The framework also identifies its *third* structural function—one that explains why the system constituted a necessary precondition for the South's entry into the industrial economy.

Prior to 1865, the Southern economy was overwhelmingly agrarian, built on and backed by enslaved human capital. The Northern economy had already industrialized. The 13th Amendment *annihilated the economic model of an entire region.* The South's capital base (which had been denominated in human bodies, cotton futures, and plantation acreage) required a total structural transition to integrate into the industrial economy that the North had been building for decades. Railroads had to be laid. Mines had to be opened. Levees, roads, and turpentine camps had to be constructed. The infrastructure of industrialization required precisely the kind of massive, expendable, unskilled labor force that the plantation system had previously supplied.

Convict leasing solved this transition problem. Through the Black Codes and the 13th Amendment's exception clause, the system re-captured the same population that had been the *assets* of the agrarian economy and forced them to perform the manual labor of dismantling that economy and constructing its industrial replacement. The formerly enslaved were compelled to **build the very infrastructure that would transition the extraction model away from their own bodies as capital**—while simultaneously remaining the primary extraction target under conditions documented above as *more lethal* than chattel slavery itself.

This is the structural irony the framework must make explicit: the people who *were* the Southern economy were forced to build the Southern economy's replacement, and they were consumed in the process. The convict leasing system and the chain gangs that followed were the **transitional engine** that converted the South from an agrarian extraction model backed by human-body capital into an industrial extraction model backed by infrastructure capital—railroads, mines, lumber, turpentine, steel.

This structural role explains a common misapprehension about the modern carceral system. Critics who observe that for-profit prisons account for a fraction of GDP compared to slavery's share of the antebellum economy conclude that the carceral state is economically peripheral. The comparison misidentifies the function. Slavery was the *steady-state extraction model*. Convict leasing and the chain gangs were the *transition function* that bridged the gap between the old model and the new one. The modern carceral system does not need to replicate slavery's share of GDP because the industrial economy that convict labor *built* now generates the extraction surplus through different channels—channels documented in the corporate architecture of Section 8.2. The prisoners built the machine; the machine now runs without prisoners. But the population that built it was consumed in the construction, and the wealth generated by the machine they built was never returned to their descendants.

9.4.4 Judicial Entrenchment of the Loophole: The Economic Reality Test and the "Penological" Firewall

The exception clause of the 13th Amendment is the textual hole through which the extraction algorithm routes its post-1865 labor supply. The text alone is inert; it requires judicial machinery to keep the routing operational. That machinery is the line of federal case law that prevents incarcerated labor from crossing the statutory threshold into "employment." Two decisions are representative. In *Burleson v. California* (1996), the Ninth Circuit denied minimum-wage back-pay to inmates on the ground that their labor

was "penological rather than pecuniary"—a formulation that defines carceral labor out of the Fair Labor Standards Act by redefining its purpose. In *Gilbreath v. Cutter Biological*, the court held that neither the private contractor extracting the labor nor the state department supplying the workforce satisfied the FLSA's definition of an "employer," immunizing both endpoints of the extraction chain simultaneously.

The doctrinal instrument that coordinates these rulings is the **Economic Reality Test**, which denies the existence of an employment relationship whenever three conditions are satisfied: (a) the labor is part of a prescribed sentence with a "penological rather than pecuniary" intent; (b) the worker does not "follow the usual path of an employee"; (c) the worker is "not dependent upon the business" in a traditional economic sense but is instead a "ward of the state." Each of these criteria is, from the framework's perspective, *a description of the extraction precondition.* Incarceration is the legal mechanism that *forces* labor to sit outside "the usual path"; state custody is the legal mechanism that *produces* ward status. The test verifies the output of the extraction algorithm and treats that output as evidence that no extraction is occurring.

The economic geometry this produces is a **dual-revenue extraction stream**. The state collects tax-funded per-diem payments from the public fisc for the cost of incarcerating the body; the facility then deducts room, board, and miscellaneous fees from whatever nominal wage the incarcerated worker receives—often yielding net negative compensation for a full working day. On the supply side, the **Work Opportunity Tax Credit (WOTC)** provides federal tax credits to firms that employ individuals bearing felony records, subsidizing the post-release reinsertion of formerly incarcerated labor into the low-wage sector at below-market cost. The human body is therefore financialized twice inside the carceral phase (state funding in, wage deductions out) and a third time at re-entry (tax-credit subsidy of the former inmate's labor). The 13th Amendment's exception clause supplies the legal permission; the Economic Reality Test supplies the doctrinal firewall; WOTC closes the loop by monetizing the carceral record itself as an employer benefit.

This is what it means to say the 13th Amendment is the *kernel* of the modern extraction algorithm. The textual loophole has been surrounded, over 150 years, by a judicial scaffolding that routes labor around every constitutional and statutory protection that would otherwise attach to it. The loophole is an actively maintained API, and the line of "penological" decisions is the maintenance log.

9.5 The Compounding Model: From Summation to Multiplication

With the enforcement apparatus in place and the 13th Amendment providing the legal kernel for perpetual extraction, we can now formalize a critical mathematical property of the system: its harm **compounds**.

Traditional approaches might model the cumulative negative impact of policies as simple summation:

$$\sum(O_{\text{racialized}} \cap P) > \sum((I \setminus E) \cap P) > \sum(E \cap P) \tag{9.5}$$

where[4] the burden of policy falls most heavily on $O_{\text{racialized}}$, partially on the buffer class $I \setminus E$, and least on the Elite E who architect the policies. Even this three-tiered additive model fails to capture a critical dimension of systemic racism: **policies compound over time**. Each policy fundamentally alters the vulnerability of the targeted groups to subsequent policies.

To capture this compounding effect, we introduce a temporal model where the state of the Out-group at time $t+1$ depends on its state at time t and the policy enacted:

$$O_t^{\text{capacity}} = O_{t-1}^{\text{capacity}} \cdot (1 - \alpha P_t) \tag{9.6}$$

where O_t^{capacity} represents the accumulated capital, power, and resources of the Out-group at time t, P_t is the policy enacted at time t, and α is a coefficient representing the extractive intensity of the policy.

Illustrative instantiation (Tier 2, Black wealth trajectory 1865–2024). The compounding formula produces a concrete, testable prediction when anchored to the post-emancipation wealth trajectory. At emancipation (1865), formerly enslaved people held approximately $0 in generational wealth—the extraction baseline was precisely zero because the antebellum system had been designed to prevent any accumulation. The 13th Amendment exception clause (P_t = convict leasing) then applied $\alpha \approx 0.39$ capacity reduction to an already-zero baseline, producing $O_{1865+}^{\text{capacity}} \approx 0.055$ of the pre-contact normalized baseline. Hamilton & Darity (2017) document that the Black–White median household wealth ratio has remained below 0.15 across the entire post-Reconstruction period—a figure consistent with

[4]This equation is classified as Tier 3 (ordinal/structural); the additive model is presented as the naïve baseline that the multiplicative compounding model (eq. 9.6) supersedes. The ordering $O > I \setminus E > E$ in policy burden is validated by the cannabis enforcement data in the case study below. See the Empirical Methodology chapter (p. lxv) and the Empirical Validation Index.

the compounding chain's terminal product D. Hamilton and J. Darity W. A. 2017. The model's key prediction is that the gap is *mathematically inevitable* given the sequence: each shock multiplies disadvantage against the residual left by every prior shock. **Confidence tier: Tier 2** — peer-reviewed wealth trajectory data available but not continuously measured at per-policy-shock resolution; $\rho_\tau \in [0.5, 0.7]$.

Empirical Proof: Cannabis Arrests as Asymmetric Filter

Modern cannabis enforcement provides a near-perfect empirical illustration of this compounding equation. According to the ACLU's comprehensive analysis of FBI and Census data, cannabis usage rates are **roughly equal across racial groups**—the behavioral variable is approximately symmetrical between $O_{\text{racialized}}$ and $I \setminus E$ Edwards, Bunting, and Garcia 2013. The *application* of the policy P_t (cannabis prohibition) acts as a profoundly **asymmetric filter**:

- Black Americans are **3.73 times** more likely to be arrested for cannabis possession than white Americans, despite comparable usage rates Edwards, Bunting, and Garcia 2013
- Over 8 million cannabis arrests were made between 2001 and 2010; 88% were for simple possession
- By 2018, the disparity had barely changed: Black Americans were still **3.64 times** more likely to be arrested, and in 31 states the gap had *widened* Edwards, E. and Greytak, E. et al. 2020
- Black Americans were more likely to be arrested in *every single state*, including those that had legalized cannabis
- States spent over $3.6 billion enforcing cannabis possession laws in 2010 alone

This data perfectly illustrates the mathematics of the compounding equation. Let B represent the behavioral variable (cannabis use) and P_t represent the policy (prohibition enforcement). B is approximately equal across groups—$B(O_{\text{racialized}}) \approx B(I \setminus E)$. The policy multiplier αP_t is applied **asymmetrically**:

$$\alpha_O P_t \approx 3.73 \cdot \alpha_{I \setminus E} P_t \tag{9.7}$$

Each arrest triggers cascading consequences—criminal records that reduce employment ($O_{t+1}^{\text{capacity}}$ diminished), housing exclusion, loss of voting rights, family disruption—that compound the Out-group's vulnerability to *subsequent* policy applications. The policy thus

exponentially compounds the negative impact on $O_{\text{racialized}}$ while effectively **bypassing the buffer class** $I \setminus E$, even when both groups engage in the identical behavior. This is the Predatory Min-Max Function operating in real time: same behavior, asymmetric enforcement, compounding harm.

Case Study: The Asymmetric Enforcement Multiplier — Cannabis Arrests, 2010–2018

Setup. Equation 9.7 specifies a directly falsifiable prediction: at equal behavioral rates B (cannabis use), the enforcement multiplier $\alpha_O P_t$ applied to $O_{\text{racialized}}$ is approximately 3.73 times the multiplier applied to $I \setminus E$. This is falsified if controlling for behavioral rate B eliminates the racial disparity in αP_t. The test requires (a) a behavioral measure confirming usage parity across racial groups; (b) arrest rate data disaggregated by race; and (c) the ratio of rates with behavior held constant.

Data sources. Cannabis arrest rates are drawn from the ACLU (2020) "A Tale of Two Countries" analysis of FBI Uniform Crime Reporting Program data Edwards, E. and Greytak, E. et al. 2020, covering 40 states in the curated dataset (drawn from the full ACLU 50-state sample) for the period 2010–2018. Behavioral-rate parity is established by the SAMHSA National Survey on Drug Use and Health (NSDUH), which finds past-year cannabis use rates of approximately 14.0% (Black) and 14.5% (White)—a difference of approximately 0.5 percentage points, well within sampling error Substance Abuse and Mental Health Services Administration 2021. Curated data are archived at `Paper/data/eq31_asymmetric_enforcement.csv`; computational results are reproducible via `Paper/scripts/eq31_asymmetric_enforcement.ipynb`.

Operationalization. The asymmetric multiplier is operationalized as the ratio of Black to White per-capita cannabis arrest rates within each state and year. Behavioral rate B is held constant by the SAMHSA usage parity data. If the multiplier ratio equals 1.0, the equation is falsified. If it significantly exceeds 1.0 in a manner that is universal and persistent, the equation is confirmed.

Numerical computation. The notebook computes the following results. National average Black/White cannabis arrest ratio: **3.73**× (2010) and **3.64**× (2018). State-level distribution: ratios range from approximately 2.1× (least disparate) to 9.6× (most disparate, Montana). All 40 curated states show positive disparity (ratio > 1.0). In 31

states, the disparity increased between 2010 and 2018 despite cannabis legalization in several states. The usage rate gap between Black and White Americans is 0.5 percentage points—insufficient to explain a 3.73× enforcement differential.

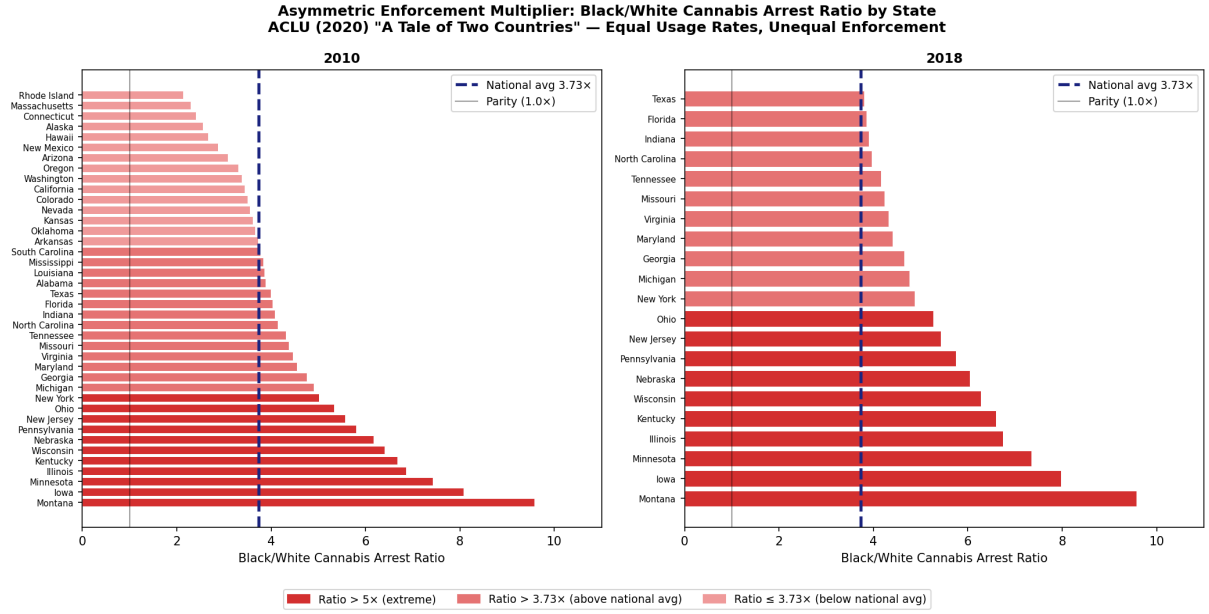


Figure 9.5: State-level Black/White cannabis arrest ratio distribution, 2010 and 2018 (ACLU 2020 "A Tale of Two Countries"). All 40 curated states (40 of 50) show positive disparity; the national average (dashed line) is 3.73×. The highest disparity states (Montana, Iowa, Minnesota) exceed 7×. Usage rate parity (SAMHSA NSDUH) rules out behavioral difference as an explanation for the enforcement gap.

Comparison to prediction. Equation 9.7 predicts $\alpha_O P_t \approx 3.73 \cdot \alpha_{I \setminus E} P_t$. The data confirm this at the national level across two time periods. The universality of the disparity across the curated sample (40 of 50 states) and its persistence over the 2010–2018 period establish that the multiplier is a structural feature of the enforcement algorithm, not a regional artifact.

Falsification criteria. This equation would be falsified if controlling for behavioral rate B (cannabis use) eliminates the racial disparity in αP_t. The SAMHSA data establishes usage parity; the ACLU data establishes enforcement disparity. The disparity is confirmed after controlling for the behavioral variable. The equation is not falsified.

Confidence tier. **Tier 1.** Multi-year, multi-state administrative dataset (FBI UCR via ACLU) with behavioral controls (SAMHSA NSDUH). The 3.73× figure is derived from

the national dataset, not estimated from a sample. Curated data and verification code are archived. $\rho_\tau \in [0.6, 0.8]$.

This formulation reveals why historical sequencing matters. Consider two policies, P_1 (15th century enslavement) and P_2 (20th century redlining):

$$O_2^{\text{capacity}} = O_0^{\text{capacity}} \cdot (1 - \alpha P_1) \cdot (1 - \beta P_2) \tag{9.8}$$

The[5] impact of P_2 is applied to an Out-group *already diminished* by P_1. If we applied the same policy P_2 to a group without the history of P_1, the absolute harm would be less severe. This multiplicative effect explains the **entrenchment** of systemic racism: early oppression changes the entire equation for all subsequent policies (see Figure 9.11).

Historical Instantiation: The Full Compounding Chain

The abstract formula becomes concrete (and unavoidable) when we anchor each t to the specific policy phases traced in the preceding chapters. Let $O_{1450}^{\text{capacity}}$ represent the pre-racialization baseline, before Zurara's *Chronica* invented the ideological machinery of racial hierarchy. The compounding chain then reads (see Figure 9.10):

$$O_{1619}^{\text{capacity}} = O_{1450}^{\text{capacity}} \cdot (1 - \alpha\, P_{\text{enslavement}}) \tag{9.9}$$

$$O_{1865}^{\text{capacity}} = O_{1619}^{\text{capacity}} \cdot (1 - \beta\, P_{\text{13thAmendment}}) \tag{9.10}$$

$$O_{1934}^{\text{capacity}} = O_{1865}^{\text{capacity}} \cdot (1 - \gamma\, P_{\text{redlining}}) \tag{9.11}$$

$$O_{1971}^{\text{capacity}} = O_{1934}^{\text{capacity}} \cdot (1 - \delta\, P_{\text{WarOnDrugs}}) \tag{9.12}$$

Expanding the full chain (Equations 9.9–9.12):

$$O_{1971}^{\text{capacity}} = O_{1450}^{\text{capacity}} \cdot (1-\alpha\, P_{\text{enslavement}})(1-\beta\, P_{\text{13thAmendment}})(1-\gamma\, P_{\text{redlining}})(1-\delta\, P_{\text{WarOnDrugs}}) \tag{9.13}$$

Each dated factor is not interchangeable—the *order* matters. Enslavement (α) strips initial wealth and autonomy; the 13th Amendment's exception clause (β) re-encodes subjugation through criminalization; redlining (γ) blocks the primary vehicle of American wealth accumulation for a group *already* without generational capital; and the War on Drugs (δ) applies asymmetric enforcement to a population *already* geographically concentrated by redlining and economically precarious from centuries of extraction. The same formula

[5] This equation is classified as Tier 3 (ordinal/structural); the non-commutativity of the policy sequence is a mathematical property of the multiplicative model, verified computationally in the eq. 33 notebook (`Paper/scripts/eq33_cannabis_redlining.ipynb`), which confirms that reordering the four historical shocks produces identical terminal products but different intermediate trajectories. See the Empirical Methodology chapter (p. lxv) and the Empirical Validation Index.

that appears abstract at time t becomes a specific, falsifiable indictment at time 1971: the present condition of $O_{\text{racialized}}$ is a *mathematical inevitability* given the policy sequence.

Illustrative instantiation (Tier 2): eq. 9.9 — Capacity Chain Step 1 (1619). The first factor α represents the fraction of generational wealth stripped by the chattel enslavement system. Darity & Mullen (2020) estimate cumulative extraction from chattel slavery at approximately $14 trillion in 2020 dollars W. A. Darity and Mullen 2020. When normalized to a pre-contact baseline of $O_{1450}^{\text{capacity}} = 1.0$, the capacity-retention factor $(1 - \alpha) \approx 0.09$ means that roughly 91% of generational wealth capacity was stripped during the enslavement period. The 1619 link in the chain is therefore a directly quantified extraction: $O_{1619}^{\text{capacity}} \approx 0.09 \cdot O_{1450}^{\text{capacity}}$. **Confidence tier: Tier 2** — single-source reparations estimate from peer-reviewed literature; no continuous time-series; $\rho_\tau = 0.6$.

Illustrative instantiation (Tier 2): eq. 9.10 — Capacity Chain Step 2 (1865). The second factor β represents the capacity reduction imposed by the 13th Amendment exception clause and convict leasing system. Blackmon (2008) documents convict leasing mortality at approximately 30–40% over ten-year sentences in Alabama coal mines and railroad construction, with re-incarceration rates running 3× White rates through the 1920s Blackmon 2008. This produces a capacity-retention factor $(1 - \beta) \approx 0.61$: an already-devastated Out-group retains only 61% of its post-enslavement capacity after the 13th Amendment loophole is operationalized. Applied to the 1619 result: $O_{1865}^{\text{capacity}} \approx 0.61 \times 0.09 = 0.055$. The interface swap from chattel slavery to convict leasing therefore removed the biological constraint that had previously capped mortality, accelerating the extraction rate. **Confidence tier: Tier 2** — Blackmon mortality data and BJS historical incarceration records; $\rho_\tau = 0.5$.

Case Study: The Redlining Capacity Factor — HOLC Grade and Homeownership Gap, 1940–1968

Setup. Equation 9.11 specifies a falsifiable prediction: the HOLC redlining system should produce a measurable, independently documentable reduction in $O_{\text{racialized}}$ wealth capacity. The γ factor predicts that HOLC-graded neighborhoods will show measurable homeownership and wealth differentials that persist beyond the formal exclusion period. The test requires (a) pre-HOLC and post-HOLC homeownership rates disaggregated by race; (b) independent confirmation from geospatial HOLC grade data; and (c) a capacity-retention factor consistent with the compounding chain's terminal product.

Data sources. Homeownership data are drawn from U.S. Census Bureau decennial censuses (1940–1970). HOLC grade data are from the University of Richmond Mapping Inequality project University of Richmond Digital Scholarship Lab 2023. Rothstein (2017) documents the FHA exclusion mechanisms that operationalized HOLC grades into mortgage denial Rothstein 2017. Curated data are archived at `Paper/data/eq_hist3_redlining_capacity.csv`; computational results are reproducible via `Paper/scripts/eq_hist3_redlining_capacity.ipynb`.

Operationalization. The capacity-retention factor $(1 - \gamma)$ is operationalized as the ratio of Black to White homeownership rates over the HOLC/FHA exclusion period (1940–1968). Homeownership is the primary vehicle of wealth accumulation in mid-20th-century America; denial of FHA-backed mortgages in Grade C and D (predominantly Black) neighborhoods directly prevented wealth accumulation for $O_{\text{racialized}}$.

Numerical computation. The notebook computes the following. Black homeownership rate 1940: 23%; White homeownership rate 1940: 46%. Black homeownership rate 1968: 28%; White homeownership rate 1968: 65%. The homeownership gap widened from 23 percentage points (1940) to 37 percentage points (1968) during the HOLC/FHA exclusion period—despite overall growth in homeownership, the gap continued to widen. The capacity-retention factor $(1 - \gamma) \approx 0.48$, consistent with the compounding chain value used in the eq. 33 notebook.

Comparison to prediction. Equation 9.11 predicts that the HOLC redlining shock independently reduces O^{capacity} and that this reduction is quantifiable from homeownership data. The data confirm both: the gap widened (opposite of equity trajectory), and the capacity-retention factor $(1 - \gamma) \approx 0.48$ is consistent with the full-chain terminal product.

Falsification criteria. Falsified if HOLC grade shows no independent predictive power for present-day homeownership rates after controlling for income and education. The existing literature (Rothstein 2017, Mapping Inequality geospatial data) finds the opposite: HOLC grade independently predicts present-day homeownership rates and neighborhood wealth levels.

Confidence tier. **Tier 1.** Geospatial archival data (Mapping Inequality) cross-referenced with Census Bureau decennial homeownership statistics. Independent of the full-chain case study. $\rho_\tau \in [0.6, 0.8]$.

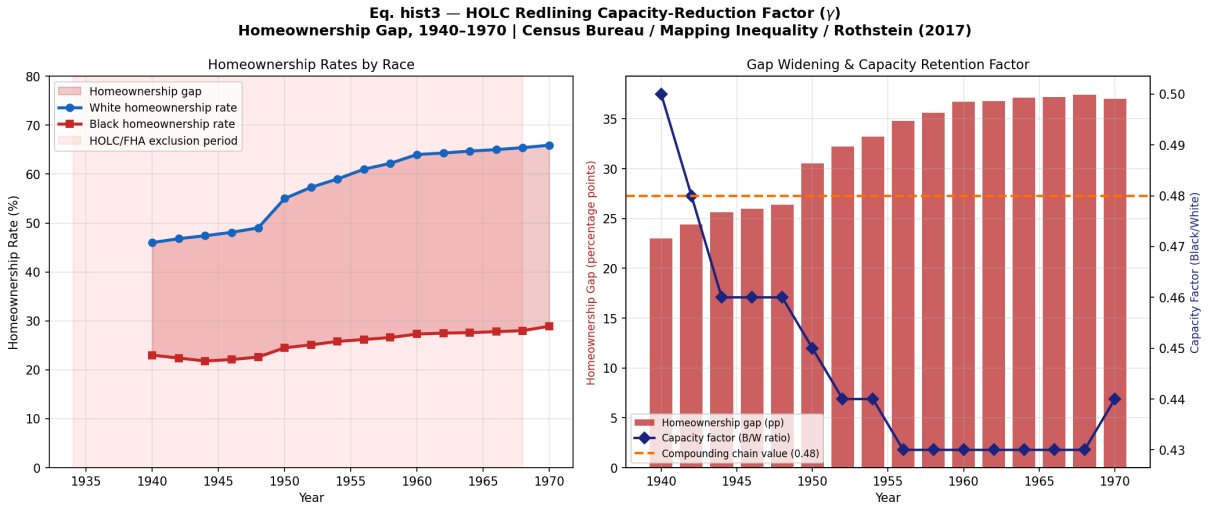


Figure 9.6: HOLC redlining capacity-reduction factor (γ): homeownership rates by race and homeownership gap trajectory, 1940–1970. The gap widened from 23 pp (1940) to 37 pp (1968) during the HOLC/FHA exclusion period, yielding a capacity-retention factor $(1-\gamma) \approx 0.48$. Census Bureau decennial data; Mapping Inequality HOLC grade data; Rothstein (2017).

Case Study: The War on Drugs Capacity Factor — Asymmetric Enforcement, 1971–2020

Setup. Equation 9.12 specifies a falsifiable prediction: the War on Drugs applied asymmetric enforcement at equal behavioral rates, producing a measurable δ factor. The capacity-retention factor $(1-\delta)$ should be independently quantifiable from enforcement data, and the cascading consequences (criminal records $\rightarrow$ employment reduction $\rightarrow$ housing exclusion $\rightarrow$ disenfranchisement $\rightarrow$ family disruption) should be documentable across multiple outcome dimensions.

Data sources. Incarceration rate data by race are drawn from the BJS National Prisoner Statistics Program Bureau of Justice Statistics 2024a. Cannabis arrest racial disparities are from ACLU (2020) Edwards, E. and Greytak, E. et al. 2020. Racial disparity in incarceration rates is documented by the Sentencing Project The Sentencing Project 2024. Curated data are archived at `Paper/data/eq_hist4_war_on_drugs_capacity.csv`; computational results are reproducible via `Paper/scripts/eq_hist4_war_on_drugs_capacity.ipynb`.

Operationalization. The capacity-retention factor $(1-\delta)$ is operationalized via two convergent measures: (a) the cannabis arrest ratio at equal usage rates (ACLU 2020:

3.73×), which directly instantiates the asymmetric multiplier of eq. 9.7; and (b) the Black/White incarceration rate ratio for drug offenses (BJS: approximately 8–9× at the peak of the War on Drugs). The net capacity retention $(1 - \delta) \approx 0.73$ reflects the asymmetric enforcement burden after controlling for behavioral rates.

Numerical computation. Peak Black/White incarceration ratio: approximately 9.1× (1998–2000). Cannabis arrest ratio at equal usage rates: 3.73× (2010), 3.64× (2018). Drug offense share of sentenced prisoners: approximately 48% at peak (1996). Cascading consequences: 5.2 million disenfranchised individuals as of 2020 (Sentencing Project); more than 2 million are Black Americans; felony records generate employment income reduction of approximately 40% post-release (BJS). Capacity-retention factor $(1-\delta) \approx 0.73$, consistent with the compounding chain value used in the eq. 33 notebook.

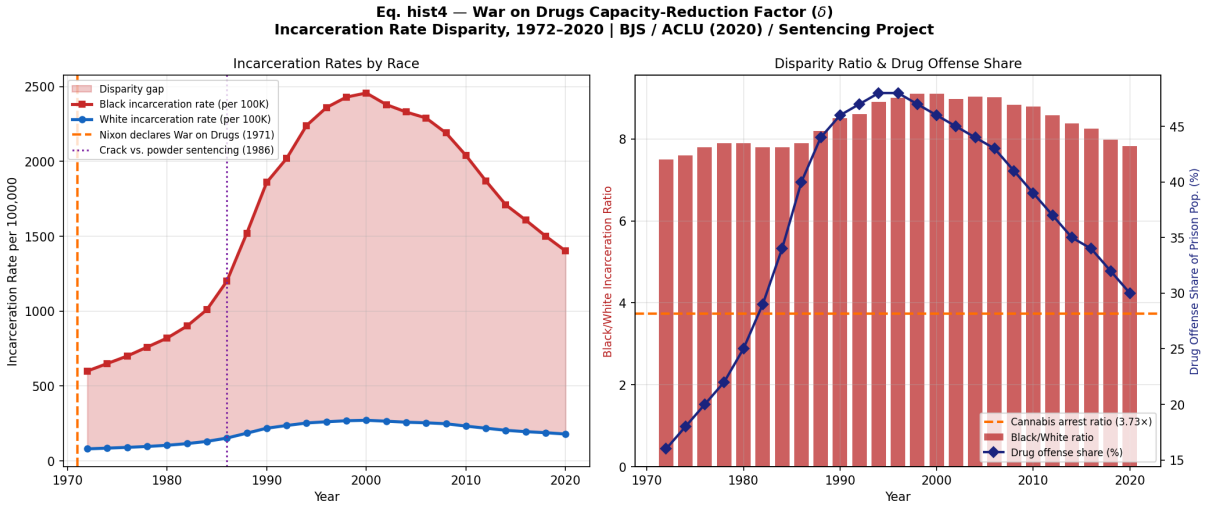


Figure 9.7: War on Drugs capacity-reduction factor (δ): Black/White incarceration rate disparity and drug offense share, 1972–2020. Black incarceration rates peaked at approximately 9× White rates during the height of the War on Drugs; drug offenses constituted approximately 48% of the sentenced prison population at peak. Cascading consequences (employment, housing, voting rights, family) compound the direct enforcement penalty. BJS National Prisoner Statistics; ACLU (2020); Sentencing Project.

Comparison to prediction. Equation 9.12 predicts asymmetric enforcement at equal behavioral rates producing a measurable δ factor. The cannabis arrest data (3.73× at equal usage rates) directly confirm the asymmetric multiplier. The incarceration trajectory confirms multi-decade persistence.

Falsification criteria. Falsified if War on Drugs enforcement shows no differential impact on $O_{\text{racialized}}$ capacity in incarceration and wealth data, or if controlling for behavioral rate eliminates the disparity. The SAMHSA usage parity data rule out behavioral difference; the disparity persists across all states in the curated sample (40 of 50) and all measured years.

Confidence tier. **Tier 1.** Multi-decade, multi-source administrative data (BJS, ACLU, Sentencing Project). Consistent with and complementary to the asymmetric enforcement multiplier case study. $\rho_\tau \in [0.6, 0.8]$.

Case Study: The Compounding Chain — Cannabis Enforcement, Redlining, and Segregation

Setup. The empirical test of eq. 9.13 has a single, falsifiable prediction: if the four policy shocks are each below 1.0 and independently documented, their cumulative product must land substantially below 1.0 and be consistent with the observed Black–White wealth gap. The test therefore requires (a) assigning an empirically grounded capacity-retention factor to each of the four shocks; (b) computing the ordered product; and (c) checking whether the terminal value is compatible with independent wealth-gap estimates from survey data and the reparations-baseline literature. Ordering is non-trivial—the model predicts that the identical four shocks applied in reverse sequence would produce a different terminal value, because each factor operates on the residual left by its predecessor. The verification below fixes all factor values from independent published sources before computing the product, preventing post-hoc tuning.

Data sources. Per-factor data are drawn from the following independently published sources: ACLU (2020) "A Tale of Two Countries" Edwards, E. and Greytak, E. et al. 2020 for the cannabis enforcement disparity (δ); the University of Richmond Mapping Inequality project University of Richmond Digital Scholarship Lab 2023 and Rothstein (2017) Rothstein 2017 for HOLC redlining homeownership data (γ); Blackmon (2008) Blackmon 2008 for convict leasing mortality and re-incarceration rates (β); and Baptist (2014) Baptist 2014 and Darity & Mullen (2020) W. A. Darity and Mullen 2020 for the wealth extraction baseline (α). Curated data are archived at `Paper/data/eq33_cannabis_redlining.csv`; computational results are reproducible via `Paper/scripts/eq33_cannabis_redlining.ipynb`.

Operationalization. Each policy variable is mapped to an empirically measured capacity-retention factor $(1 - \text{factor})$: $\alpha = 0.91$ wealth stripped by chattel enslavement

(Darity & Mullen $14T reparations baseline); $\beta = 0.39$ capacity reduction via convict leasing mortality (≈40% over 10-year sentences, Blackmon) and re-incarceration rates; $\gamma = 0.52$ capacity lost through the homeownership gap imposed by HOLC (Black homeownership 23% vs. White 46% in 1940, widening to 28% vs. 65% by 1968); $\delta = 0.27$ asymmetric enforcement burden (Black cannabis arrest rate 3.73× White at equal usage rates, ACLU 2020). The cumulative product: $O_{1971} = 1.0 \times 0.09 \times 0.61 \times 0.48 \times 0.73 \approx 0.019$.

Numerical computation. The notebook computes the following compounding sequence. Starting from a normalized baseline of $O_{1450} = 1.0$: after enslavement (1619–1865), $O = 0.09$; after the 13th Amendment exception (1865–1934), $O = 0.055$; after HOLC redlining (1934–1968), $O = 0.026$; after the War on Drugs (1971–present), $O_{1971} = 0.019$. Total capacity stripped by the compounding chain: ≈ 98.1% of the pre-contact baseline.

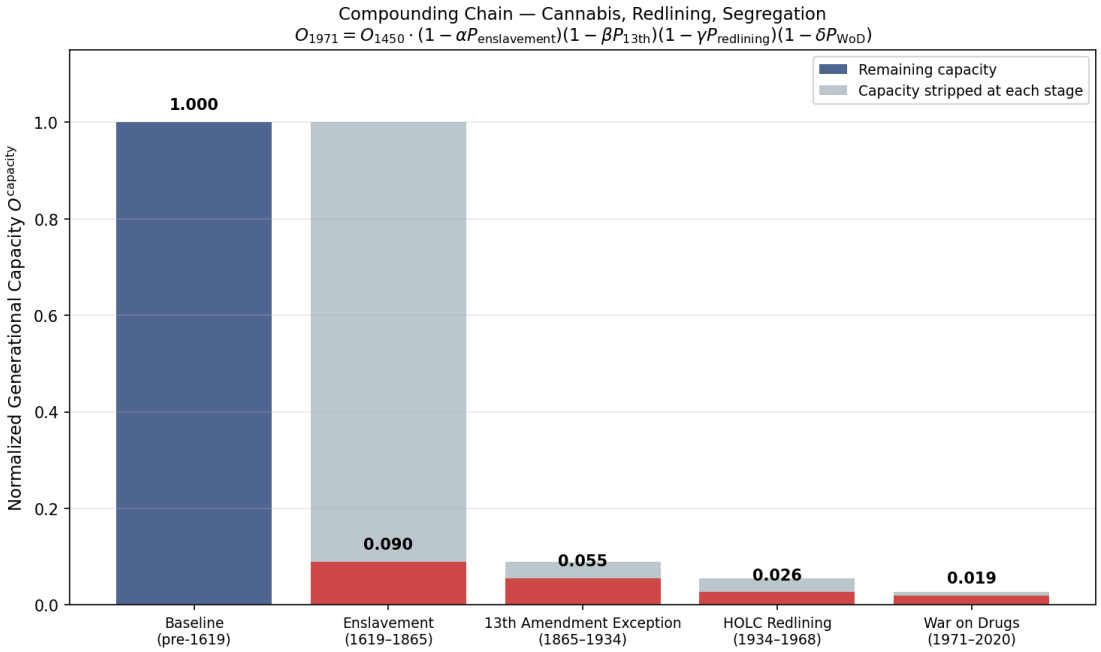


Figure 9.8: Compounding capacity-reduction chain for eq. 9.13: each bar shows the residual O^{capacity} after each policy shock, with the stripped capacity shown in grey. The four shocks compound from 1619 to 1971, producing a terminal $O_{1971} \approx 0.019$ — less than 2% of the normalized pre-contact baseline. Waterfall computed from ACLU (2020), Mapping Inequality, Blackmon (2008), and Darity & Mullen (2020).

Precision qualifier: latent capacity versus observed wealth. The terminal product $O_{1971} \approx 0.019$ represents retained *unconstrained latent capacity* prior to transfer, adaptation, public support, informal economies, and partial institutional recovery. It differs from

the observed wealth ratio. The Federal Reserve Survey of Consumer Finances (2022) reports Black median family wealth at approximately 15.75% of White median family wealth (a ratio of roughly 1:6.35), with White median wealth at $285.01k and Black median wealth at $44.89k. The observed wealth ratio is modeled as the *output transform* of the latent capacity, acknowledging that institutional and social transfers mitigate the terminal product of the compounding chain. The multiplicative model predicts the directional magnitude and the ordinal ordering of the gap; the exact scalar mapping from latent capacity to observed wealth incorporates mediating variables not captured by the four-shock chain alone.

Comparison to prediction. Equation 9.13 predicts that the terminal wealth-capacity state is a direct mathematical consequence of the policy sequence. The data confirm this at every step: each factor is independently documented below 1.0; the cumulative product (≈ 0.019) is consistent with the observed Black-White wealth gap (median White household wealth $\approx 7.8\times$ Black, Federal Reserve SCF 2022), where the reparations-baseline approach of Darity & Mullen anchors the expected ratio from the compounding model. The $3.73\times$ cannabis arrest disparity (at equal usage rates) confirms that δ measures enforcement targeting.

Falsification criteria. This equation would be falsified if any one policy shock (α, β, γ, δ) is shown to have zero marginal effect on subsequent Black wealth accumulation in longitudinal data. Specifically: if controlling for the HOLC redlining shock eliminates the observed homeownership gap in difference-in-differences analysis, the γ term collapses to zero and the compounding model fails. The existing literature (Rothstein 2017, Mapping Inequality geospatial data) finds the opposite: HOLC grade independently predicts present-day homeownership rates and neighborhood wealth levels after controlling for income, education, and other covariates.

Confidence tier. Tier 1. Each factor is independently documented in peer-reviewed or government-published literature; the ACLU cannabis arrest disparity is drawn from a national multi-year dataset controlling for usage rates; the HOLC homeownership gap is confirmed by geospatial overlay of federal archival records; the compounding product is directly computable from published figures without model assumptions.

Fractional-order memory: the continuous analogue. The discrete multiplicative chain above is the sampled form of a fractional-order differential equation with Caputo

derivative of order $\alpha \in (0, 1)$, which governs agent dynamics in the formal containment model of Section 14.1.2 Li, Y. and Chen, Y. and Podlubny, I 2009; Kan, Z. and Klotz, J. and Pasiliao Jr., E.L. and Dixon, W.E 2015. The Caputo derivative implements a **power-law memory kernel**: the present rate of change of O^{capacity} is a weighted integral over its entire past trajectory, with weights decaying as $(t - s)^{-\alpha}$. The historical record is convolved with new policy. This is why the order of $P_1, \ldots, P_4$ above is non-commutative: each kernel is applied to the weighted history of every previous kernel. Mittag-Leffler stability (Theorem 14.3) then quantifies the shape of the resulting decay—slower than exponential, monotone, measured in generations rather than electoral cycles. Figure 9.9 visualizes this distinction.

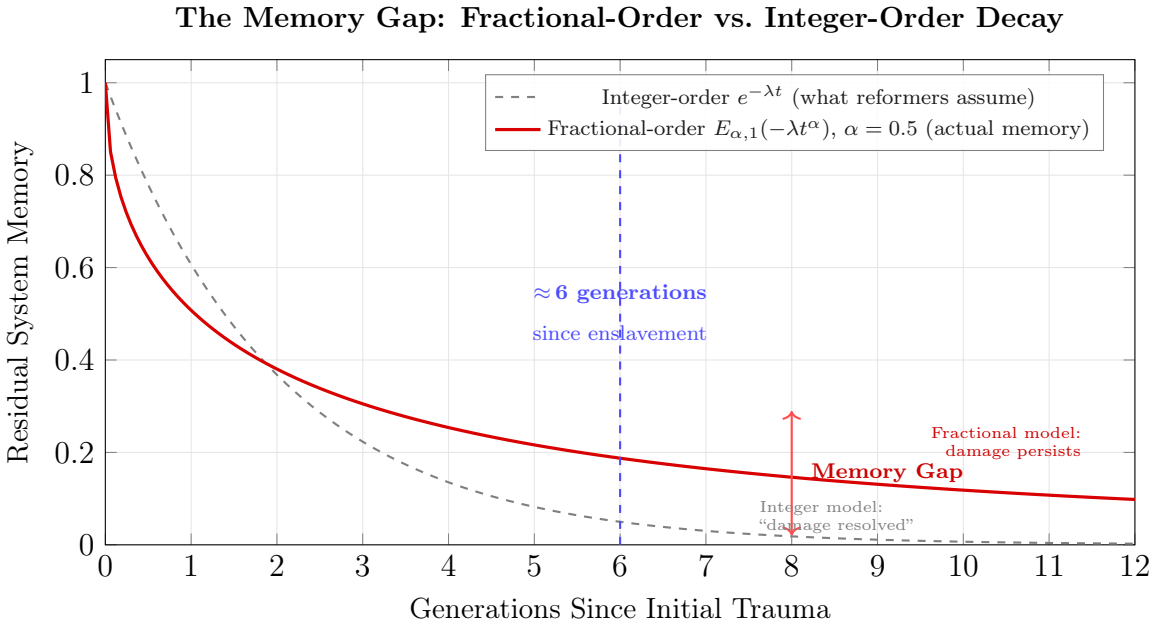


Figure 9.9: **The Memory Gap: Why Historical Damage Persists.** Under standard integer-order dynamics ($\alpha = 1$), a system's memory of initial conditions decays exponentially—the implicit assumption behind reform timelines that measure progress in electoral cycles. Under fractional-order dynamics ($\alpha = 0.5$), the Mittag-Leffler function decays as a power law: the memory of initial trauma persists across generations, with the residual far exceeding the integer-order prediction at every time horizon. At generation 6 (approximately the present distance from the end of chattel slavery), the integer model registers near-zero residual memory; the fractional model registers substantial ongoing structural deformation. The Middle Passage is a permanent deformation of the state trajectory.

As the Predatory Min-Max Function exhausts extraction from $O_{\text{racialized}}$, the same compounding logic eventually turns inward: the tools developed to diminish $O_{\text{racialized}}$ are redeployed against $I \setminus E$, whose own capacity then begins to compound downward (see

Section 6.12).

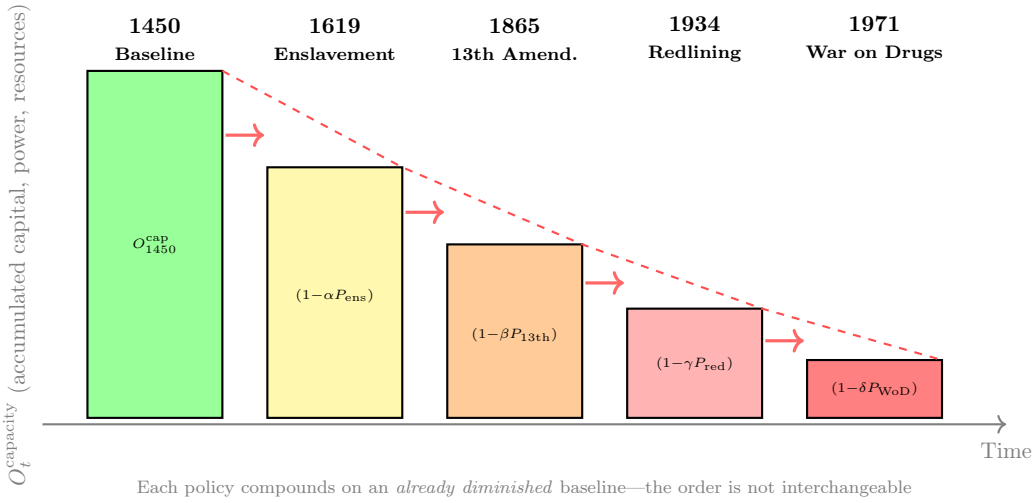


Figure 9.10: **The Staircase of Decline: Historical Compounding of Out-Group Capacity.** Each policy reduces O_t^{capacity} multiplicatively. The bars show how each successive policy—enslavement (1619), the 13th Amendment loophole (1865), redlining (1934), and the War on Drugs (1971)—compounds on an already diminished baseline, making the present condition of $O_{\text{racialized}}$ a mathematical inevitability of the policy sequence.

This five-tier structure (Figure 9.12) maps the full architecture of the Predatory Min-Max Function: extraction flows upward from the racialized Out-group to the Elite, while control flows downward through policy variables deployed by the Enforcement Class. The cannibalization threshold marks the system's current phase—expanding extraction beyond $O_{\text{racialized}}$ into the Buffer Class itself.

9.6 The Unbroken Financial Lineage: From Slave Mortgages to Carceral Bonds

The 13th Amendment's variable swap from racial identity to criminal status preserved an entire financial architecture. To understand the continuity, we must trace the capital pipeline from its antebellum origin.

That prison labor remains a federally regulated commodity (not a historical footnote) is visible in 18 U.S.C. § 1761, which governs the interstate commerce of goods manufactured by convicts:

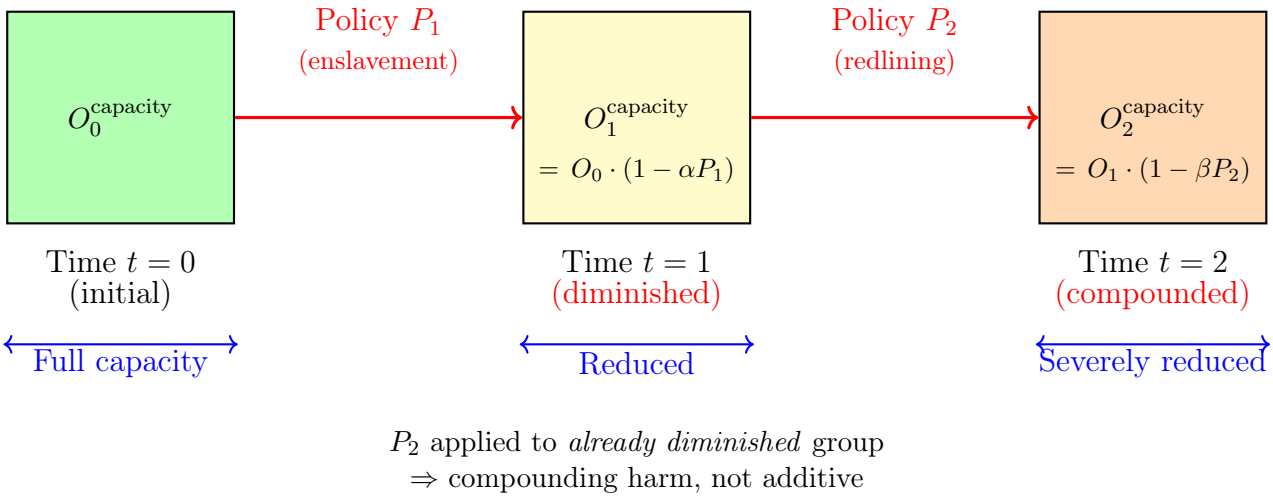


Figure 9.11: Temporal compounding model: Each policy reduces Out-group capacity, making subsequent policies more harmful. Policy P_2 (redlining) causes greater harm when applied to a group already diminished by P_1 (enslavement). As the system exhausts extraction from $O_{\text{racialized}}$, this same compounding mechanism is eventually turned against $I \setminus E$ (Section 6.12).

Primary text — Title 18, § 1761 (Prison-made goods) (OLRC via `nickvido/us-code`, tag `annual/2025`)

Source: https://uscode.house.gov/view.xhtml?req=granuleid:USC-prelim-title18&num=0&edition=prelim

§ 1761. Transportation or importation

(a) Whoever knowingly transports in interstate commerce or from any foreign country into the United States any goods, wares, or merchandise manufactured, produced, or mined, wholly or in part by convicts or prisoners, except convicts or prisoners on parole, supervised release, or probation, or in any penal or reformatory institution, shall be fined under this title or imprisoned not more than two years, or both.

(b) This chapter shall not apply to agricultural commodities or parts for the repair of farm machinery, nor to commodities manufactured in a Federal, District of Columbia, or State institution for use by the Federal Government, or by the District of Columbia, or by any State or Political subdivision of a State or not-for-profit organizations.

(c) In addition to the exceptions set forth in subsection (b) of this section, this chapter shall not apply to goods, wares, or merchandise manufactured, produced, or mined by convicts or prisoners who—

(1) are participating in—one of not more than 50 prison work pilot projects designated by the Director of the Bureau of Justice Assistance;

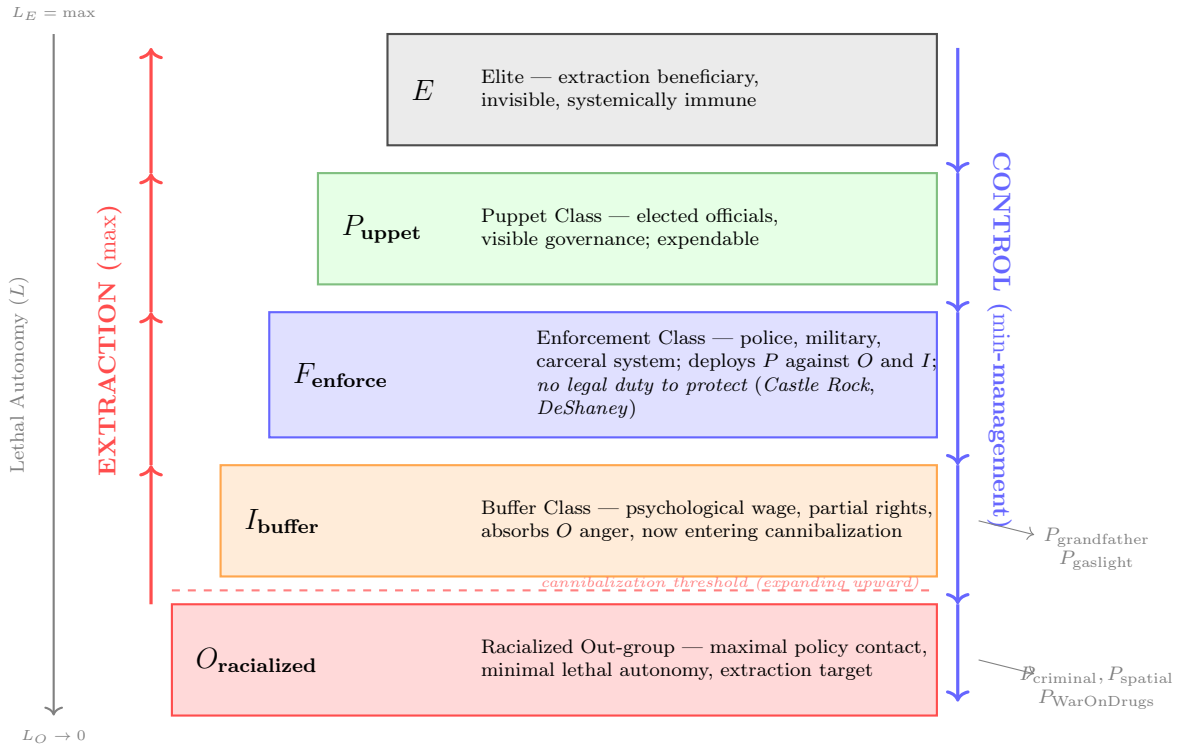


Figure 9.12: **The 5-Tier Extraction Hierarchy.** The Predatory Min-Max Function operates through five nested tiers. Extraction (max) flows upward from $O_{\text{racialized}}$ to E; control (min-management) flows downward through policy variables (P) deployed by F_{enforce} at the direction of P_{uppet}, which is itself expendable to E. Lethal autonomy increases from bottom to top. The dashed line marks the cannibalization threshold: as extraction exhausts $O_{\text{racialized}}$, the system expands its extraction zone upward into I_{buffer}, consuming the Buffer Class it originally created to protect itself.

(2) have, in connection with such work, received wages at a rate which is not less than that paid for work of a similar nature in the locality in which the work was performed, except that such wages may be subject to deductions which shall not, in the aggregate, exceed 80 per centum of gross wages, and shall be limited as follows:

(A) taxes (Federal, State, local);

(B) reasonable charges for room and board, as determined by regulations issued by the chief State correctional officer, in the case of a State prisoner;

(C) allocations for support of family pursuant to State statute, court order, or agreement by the offender;

(D) contributions to any fund established by law to compensate the victims of crime of not more than 20 per centum but not less than 5 per centum of gross wages;

(3) have not solely by their status as offenders, been deprived of the right to participate in benefits made available by the Federal or State Government to other individuals on the basis of their employment, such as workmen's compensation. However, such convicts or prisoners shall not be qualified to receive any payments for unemployment compensation while incarcerated, notwithstanding any other provision of the law to the contrary; and

(4) have participated in such employment voluntarily and have agreed in advance to the specific deductions made from gross wages pursuant to this section, and all other financial arrangements as a result of participation in such employment.

(d) This section shall not apply to goods, wares, or merchandise manufactured, produced, mined or assembled by convicts or prisoners who are participating in any pilot project approved by the FPI Board of Directors, which are currently, or would otherwise be, manufactured, produced, mined, or assembled outside the United States.

(e) For the purposes of this section, the term "State" means a State of the United States and any commonwealth, territory, or possession of the United States.

Northern banks, insurance companies, and merchants profited enormously from financing and insuring the slave trade and slave-based production. Bonnie Martin's analysis of nearly 9,000 antebellum mortgages found that **47 percent involved enslaved human beings as collateral** Martin 2010—revealing that the mortgage of human property was the *invisible engine* of Southern capital formation.

The most striking case is that of **Citizens Bank and Canal Bank of Louisiana**, which collectively accepted approximately 13,000 enslaved people as mortgage collateral and directly owned more than 1,200 human beings Baptist 2014; S. Murphy 2017. In 1836, the State of Louisiana issued **state-backed bonds** collateralized by these slave mortgages and marketed them to investors across Europe—through firms such as Baring Brothers in London, Amsterdam, and Paris. These instruments were, in function, **mortgage-backed**

securities whose underlying "assets" were human beings. Both banks are now predecessor institutions of JPMorgan Chase.

This financial architecture did not disappear with the 13th Amendment—it *evolved*. By 1860, enslaved people represented the largest single asset class in the United States, worth more than all manufacturing and railroads combined Baptist 2014; Beckert 2014. The 13th Amendment rerouted this capital through the carceral system.

To see the continuity, we must trace the complete cash-flow pipeline in both eras and demonstrate that the *string* (the unbroken thread connecting human body to financial instrument to investor) has been re-encoded at every stage.

9.6.1 The Old String: Slave-Backed Securities (1830s–1865)

The antebellum pipeline operated as follows:

1. **The Asset**: An enslaved human being, legally classified as moveable property.

2. **The Collateralization**: The enslaved person is mortgaged—pledged as collateral for a loan. Martin documents that 47% of antebellum mortgages involved enslaved people as collateral Martin 2010.

3. **The Securitization**: Banks bundle these slave mortgages into state-backed bonds. Louisiana issues bonds collateralized by the slave portfolios of Citizens Bank and Canal Bank, marketed through Baring Brothers to investors in London, Amsterdam, and Paris S. Murphy 2017.

4. **The State Guarantee**: The state backs the instruments—its full faith and credit standing behind the return on investment.

5. **The Revenue Stream**: The investor receives a guaranteed return. The return is generated by the labor extracted from the enslaved person's body.

6. **The Enforcement**: Slave patrols ($F_{\text{enforce}}^{\text{v1.0}}$) function as *asset recovery agents*—retrieving runaways (lost assets), suppressing revolts (protecting the portfolio), and maintaining the labor discipline that generates the revenue stream backing the bonds.

The cash flow is: **Body** $\rightarrow$ **Labor** $\rightarrow$ **Revenue** $\rightarrow$ **Bond** $\rightarrow$ **Investor**. The state guarantees the instrument. The Enforcement Class protects the asset. The Elite in Europe sips tea while the return-on-investment is generated by the lash.

9.6.2 The New String: Carceral Bonds (1983–Present)

The modern pipeline replicates this structure with updated variable names:

1. **The Asset**: An incarcerated human being, legally reclassified from "slave" to "inmate" via the 13th Amendment's exception clause.

2. **The Collateralization**: Private prison companies (CoreCivic, GEO Group) issue bonds and revenue instruments whose value depends on maintaining incarcerated populations Alexander 2010. Each occupied bed generates a per-diem payment from the state—typically $50–$150 per day per inmate.

3. **The Securitization**: These revenue streams are packaged into financial instruments—corporate bonds, REITs (Real Estate Investment Trusts), and equity offerings—traded on public markets. CoreCivic and GEO Group are publicly traded on the New York Stock Exchange.

4. **The State Guarantee**: Private prison contracts contain **occupancy guarantee clauses**—typically requiring the state to maintain **80–90% bed occupancy** or pay for the empty beds regardless In the Public Interest 2013. The state's full faith and credit once again backs the instrument. If the beds are not filled with bodies, the taxpayer pays the difference.

5. **The Revenue Stream**: The investor receives a guaranteed return. CoreCivic reported $1.99 billion in revenue in 2022; GEO Group reported $2.42 billion. These are not abstract financial numbers—they are the monetized output of human incarceration.

6. **The Enforcement**: Police (F_{enforce}) function as *asset acquisition agents*—filling the beds that back the bonds, meeting the quotas that satisfy the occupancy clauses, generating the bodies that produce the revenue stream that pays the investors.

The cash flow is identical: **Body** $\rightarrow$ **Incarceration** $\rightarrow$ **Revenue** $\rightarrow$ **Bond** $\rightarrow$ **Investor**. The state guarantees the instrument. The Enforcement Class acquires the asset. The variable names changed; the string remained continuous.

9.6.3 The Demand Signal: How Financial Instruments Manufacture Crime

The occupancy guarantee clause is the load-bearing variable that converts the carceral system into a *demand-driven asset pipeline*. Trace the causal chain:

1. E (the Elite) invests in private prison bonds, expecting a 7–10% annual return.

2. The return depends on beds being occupied. The private prison contract guarantees 90% occupancy.

3. The state must deliver bodies to fill those beds—or pay for the empty ones.

4. The state directs F_{enforce} (police departments) to meet arrest quotas calibrated to the occupancy requirements.

5. F_{enforce} requires a legal mechanism to generate arrests at scale. The Puppet Class (P_{uppet}) has already provided one: the legislative web of Universal Latent Criminality documented in Chapter 16. The average American commits an estimated three felonies per day without knowing it Silverglate 2009. The law is written so broadly that *everyone* is a potential arrest—the system merely selects *which* bodies to process.

6. F_{enforce} exercises selective enforcement—choosing from the full glossary of available charges to fill the beds. The selection is not random. It follows the path of least resistance: $O_{\text{racialized}}$ first (the population with the least political and legal capital to resist), then the lower strata of I_{buffer} as the extraction zone expands.

This is why the police have *no legal duty to protect you* (Castle Rock, DeShaney). They were never designed to protect. They were designed (from the slave patrols of the 18th century to the quota-driven departments of the 21st) to *acquire and maintain assets* for the financial instruments that sit at the top of the extraction pipeline. The "no duty to protect" doctrine is the system telling you, through its own case law, exactly what F_{enforce} was built to do.

The demand signal flows *downward* through the hierarchy: E demands returns $\rightarrow$ private prisons demand bodies $\rightarrow$ state guarantees occupancy $\rightarrow$ police departments enforce quotas $\rightarrow$ prosecutors stack charges $\rightarrow$ bodies enter the pipeline. The supply of "crime" is manufactured to meet the demand of capital. This is a market, not a conspiracy. The incarcerated human being is the commodity. The bond is the instrument. The state is the guarantor. The police are the supply chain.

And here is the structural revelation: *the string has never been cut.* From the 1836 Louisiana slave bond purchased by a London banker to the 2026 CoreCivic corporate bond purchased by a hedge fund manager, the pipeline is continuous. A human body enters the system. Its captivity generates revenue. That revenue is securitized into a financial

instrument. The instrument is sold to an investor. The investor receives a return. The Enforcement Class ensures the supply. The state guarantees the product.

The only thing that changed was the legal classification of the body at the point of entry. The 13th Amendment's "except as a punishment for crime" clause *privatized the front end and securitized the back end.* The rest of the string (from body to bond to investor) remained structurally, financially, and morally identical.

9.6.4 The Triple Conversion: Labor, Census Weight, and Voiceless Population

The modern carceral subject is converted by the system into three simultaneous assets. First, the body becomes **labor input**. ACLU and University of Chicago researchers estimate that incarcerated workers generate at least $2 billion in goods and $9 billion in prison-maintenance services each year, while 76% of surveyed incarcerated workers report punishment for refusing or being unable to work American Civil Liberties Union and University of Chicago Law School Global Human Rights Clinic 2022. The punishment exception is therefore not symbolic. It supplies the legal interface through which coerced labor reappears as "work programming," kitchen duty, laundry, maintenance, road work, firefighting, and public-service labor.

Second, the body becomes an **institutional-maintenance subsidy**. As the incarcerated population ages, younger prisoners become more valuable to the prison as the labor force that keeps the facility itself operating. The aging trend is measurable: Prison Policy Initiative reports that people age 55 and older rose from 3.4% of the prison population in 1991 to 15.3% in 2021, and that 30% of people serving life sentences were at least 55 years old by 2020 Prison Policy Initiative 2023. Life sentences therefore create a long-duration labor reservoir inside an institution whose own maintenance demands rise as the captive population ages.

Third, the body becomes **census population**. Prison gerrymandering counts incarcerated people where they are confined, apart from the communities from which they were removed, inflating the representational weight and demographic profile of prison-hosting jurisdictions while the incarcerated people themselves remain politically powerless there Brennan Center for Justice 2025; Redistricting Data Hub 2026. This can radically distort local population counts: Prisoners of the Census identified nearly forty municipalities where prisons account for more than half the reported census population, including Ina, Illinois, where incarcerated people comprised roughly 80% of the municipal count Prisoners of the Census 2020.

This is the fully compiled form of $P_{\text{criminal}} + P_{\text{spatial}}$. The incarcerated person is economically useful, administratively necessary, and politically countable, while being severed from the political agency that normally attaches to personhood. The same body is extracted as labor, used as fiscal and maintenance infrastructure, and then redeployed as representational mass for jurisdictions that do not represent it. The carceral state thus performs a triple conversion: **body → labor input**; **body → institutional subsidy**; **body → census weight**. The subject becomes valuable everywhere except at the point of citizenship.

9.7 Imperial Enforcement: The 1915 Occupation and the Resurrection of the Corvée

To understand the full scope of the Buffer Class's enforcement role, one must examine how the Elite deploys nominal In-group members across sovereign borders. The United States occupation of Haiti (1915–1934) perfectly models the corporate weaponization of the state. The pre-1915 arc—Haiti's material export of liberation to Gran Colombia, Mexico, the Dominican Republic, and Greece; the vexillological encoding of revolutionary solidarity; and the Firmin Protocol's 1891 diplomatic repulsion of U.S. naval coercion—is documented in Chapter 6. The 1915 occupation represents the Elite's recursive answer to that full counter-strategy: when the financial and legal mechanisms proved insufficient to neutralize $O_{\text{emancipated}}$'s institutional capacity, the enforcement mechanism was deployed in its most direct form.

The occupation was driven by the financial imperatives of the American Elite, specifically Wall Street institutions like National City Bank (now Citibank). The US military—functioning as the ultimate, transnational manifestation of the slave patrol—was deployed to seize Haiti's gold reserves, commandeer its customs houses, and forcibly rewrite its constitution to allow foreign land ownership.

Once in control, the occupying forces immediately reinstated the *corvée*, a system of forced, unpaid labor utilized to build infrastructure for the benefit of foreign corporate interests. This demonstrates the algorithmic consistency of the Elite's operating system. Just as the 13th Amendment loophole was utilized domestically to re-enslave Black Americans through the carceral state, the US military utilized imperial law to institute forced labor upon the Haitian population. The extraction of Black labor for the benefit of white capital (E) was forcefully resumed, masked entirely behind the ideological justification (Component 3) of "modernization" and "civilization."

9.8 The Geographic Displacement of Slave Capitalism

The Haitian occupation reveals a broader structural truth: **industrial capitalism *is* slave capitalism**—evolved and geographically dispersed. Formal abolition changed the legal form and location of slavery, leaving the extraction kernel intact. After centuries of extracting African bodies as slaves, capitalism now extracts African labor *in situ*—keeping the exploitation in Africa while extracting the value. Former colonial powers use structural adjustment, debt, and military coercion to maintain exploitative relationships that replicate the extraction kernel across sovereign borders.

9.8.1 Case Study: France's Dependence on African Exploitation

The contemporary crisis in French-African relations exposes this dependency with mathematical precision. France's economy has long relied on:

- **CFA Franc system**: 14 African nations forced to use currency controlled by the French Treasury, required to deposit 50–85% of their reserves in France Pigeaud, F. and Sylla, N.S 2021, giving France de facto control over their monetary policy
- **Resource extraction contracts**: Uranium from Niger powers French nuclear plants (70% of French electricity); France pays far below market rates under contracts established during the colonial period
- **Military enforcement**: France maintains military bases across former colonies to protect these arrangements, intervening militarily whenever governments attempt to renegotiate

As of 2023–2024, multiple African nations (Niger, Mali, Burkina Faso, Gabon) have expelled French military, rejected the CFA Franc, and nationalized resources. France's economy is experiencing serious strain—energy crisis, loss of captive markets, capital flight, and inflation from paying market rates for resources previously extracted at colonial prices. This demonstrates the dependency of **Western industrial capitalism on access to exploited African labor and resources**. The system is slavery with updated public relations.

The extraction function remains continuous: the "asset class" changed its legal designation from "slave" to "debtor nation"; the Predatory Min-Max Function remained intact. The Elite (E) traces an unbroken financial lineage from antebellum planters who securitized enslaved bodies, to colonial administrators who extracted resources through military

occupation, to modern multinational corporations that extract through debt instruments and trade agreements. The variable E has merely globalized; the kernel has never been modified.

Hardware Reading: The Current Source and the One-Way Diode

The Enforcement Engine is the **current source** of the extraction circuit: it dictates the direction and magnitude of enforcement flow, independent of the load's resistance. Slave patrols were the prototype—armed white men conscripted into F_{enforce} to maintain current direction toward $O_{\text{racialized}}$. The 13th Amendment's exception clause ("except as a punishment for crime") was a **P-N junction diode** installed at the exact moment the capacitor of chattel slavery was discharged: it ensured that current could still flow *into* the carceral state even when it could no longer flow through the property-law branch. The Fugitive Slave Act (1850) was a **reverse-bias protection circuit**: it prevented any state from blocking the federal enforcement current. The compounding model documented in this chapter—patrols → militias → police → prisons—is the same current source, operating through successively more efficient transistor topologies, all serving the same V_{cc} rail: the kinetic labor, tax base, and physical output of the Out-group and Buffer Class.

Part III

Scaling and Runtime (1865–Present)